

**SOLICITATION, OFFER, AND AWARD**

1. This Contract is a Rated Order under the Defense Priorities and Allocations System (DPAS) - Code of Federal Regulations - at 15 CFR 700.

RATING

PAGE OF PAGES

|                    |                        |                                                                                                                                                           |                |                                |
|--------------------|------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|--------------------------------|
| 2. CONTRACT NUMBER | 3. SOLICITATION NUMBER | 4. TYPE OF SOLICITATION<br><input type="checkbox"/> SEALED BID (IFB) INVITATION FOR BID<br><input type="checkbox"/> NEGOTIATED (RFP) REQUEST FOR PROPOSAL | 5. DATE ISSUED | 6. REQUISITION/PURCHASE NUMBER |
| 7. ISSUED BY       | CODE                   | 8. ADDRESS OFFER TO (If other than item 7)                                                                                                                |                |                                |

**NOTE:** In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".**SOLICITATION**

9. Sealed offers in original and \_\_\_\_\_ copies for furnishings the supplies or services in the Schedule will be received at the place specified in item 8, or if hand carried, in the depository located in \_\_\_\_\_ until \_\_\_\_\_ local time \_\_\_\_\_ (Hour) \_\_\_\_\_ (Date)

**CAUTION** - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision Number 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.

|                           |         |                                 |        |                  |
|---------------------------|---------|---------------------------------|--------|------------------|
| 10. FOR INFORMATION CALL: | A. NAME | B. TELEPHONE (NO COLLECT CALLS) |        | C. EMAIL ADDRESS |
|                           |         | AREA CODE                       | NUMBER | EXTENSION        |

**11. TABLE OF CONTENTS**

| (X) | SECTION | DESCRIPTION                               | PAGE(S) | (X) | SECTION | DESCRIPTION                                                         | PAGE(S) |
|-----|---------|-------------------------------------------|---------|-----|---------|---------------------------------------------------------------------|---------|
|     |         | <b>PART I - THE SCHEDULE</b>              |         |     |         | <b>PART II - CONTRACT CLAUSES</b>                                   |         |
|     | A       | SOLICITATION/CONTRACT FORM                |         |     | I       | CONTRACT CLAUSES                                                    |         |
|     | B       | SUPPLIES OR SERVICES AND PRICES/COSTS     |         |     |         | <b>PART III - LIST OF DOCUMENTS, EXHIBITS AND OTHER ATTACHMENTS</b> |         |
|     | C       | DESCRIPTION/SPECIFICATIONS/WORK STATEMENT |         |     | J       | LIST OF ATTACHMENTS                                                 |         |
|     | D       | PACKAGING AND MARKING                     |         |     |         | <b>PART IV - REPRESENTATIONS AND INSTRUCTIONS</b>                   |         |
|     | E       | INSPECTION AND ACCEPTANCE                 |         |     | K       | REPRESENTATIONS, CERTIFICATIONS AND OTHER STATEMENTS OF OFFERORS    |         |
|     | F       | DELIVERIES OR PERFORMANCE                 |         |     | L       | INSTRUCTIONS, CONDITIONS, AND NOTICES TO OFFERORS                   |         |
|     | G       | CONTRACT ADMINISTRATION DATA              |         |     | M       | EVALUATION FACTORS FOR AWARD                                        |         |
|     | H       | SPECIAL CONTRACT REQUIREMENTS             |         |     |         |                                                                     |         |

**OFFER (Must be fully completed by offeror)**

**NOTE:** Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.

12. In compliance with the above, the undersigned agrees, if this offer is accepted within \_\_\_\_\_ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the set opposite each item, delivered at the designated point(s), within the time specified in the schedule.

|                                                                                                                                                                 |                                                                                                                     |                      |                                                                              |                   |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------|----------------------|------------------------------------------------------------------------------|-------------------|
| 13. DISCOUNT FOR PROMPT PAYMENT<br>(See Section I, Clause Number 52.232-8)                                                                                      | 10 CALENDAR DAYS (%)                                                                                                | 20 CALENDAR DAYS (%) | 30 CALENDAR DAYS (%)                                                         | CALENDAR DAYS (%) |
| 14. ACKNOWLEDGMENT OF AMENDMENTS<br>(The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated): | AMENDMENT NUMBER                                                                                                    | DATE                 | AMENDMENT NUMBER                                                             | DATE              |
|                                                                                                                                                                 |                                                                                                                     |                      |                                                                              |                   |
|                                                                                                                                                                 |                                                                                                                     |                      |                                                                              |                   |
| 15A. NAME AND ADDRESS OF OFFEROR                                                                                                                                | CODE                                                                                                                | FACILITY             | 16. NAME AND THE TITLE OF PERSON AUTHORIZED TO SIGN OFFER<br>(Type or print) |                   |
| 15B. TELEPHONE NUMBER                                                                                                                                           | <input type="checkbox"/> 15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE. |                      | 17. SIGNATURE                                                                | 18. OFFER DATE    |
| AREA CODE                                                                                                                                                       |                                                                                                                     |                      | NUMBER                                                                       | EXTENSION         |

**AWARD (To be completed by Government)**

|                                                                                                                                                                                        |                                                                                  |                                  |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------|----------------------------------|
| 19. ACCEPTED AS TO ITEMS NUMBERED                                                                                                                                                      | 20. AMOUNT                                                                       | 21. ACCOUNTING AND APPROPRIATION |
| 22. AUTHORITY FOR USING OTHER THAN FULL OPEN COMPETITION UNDER THE UNITED STATES CODE AT:<br><input type="checkbox"/> 10 U.S.C. 3204(a) <input type="checkbox"/> 41 U.S.C. 3304(a) ( ) | 23. SUBMIT INVOICES TO ADDRESS SHOWN IN<br>(4 copies unless otherwise specified) | ITEM                             |
| 24. ADMINISTERED BY (If other than Item 7)                                                                                                                                             | 25. PAYMENT WILL BE MADE BY                                                      | CODE                             |
| 26. NAME OF CONTRACTING OFFICER (Type or print)                                                                                                                                        | 27. UNITED STATES OF AMERICA<br><br>(Signature of Contracting Officer)           | 28. AWARD DATE                   |

**IMPORTANT** - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

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Previous edition is unusable

**STANDARD FORM 33 (REV. 12/2022)**  
Prescribed by GSA - FAR (48 CFR) 53.214 (c)

## **Section A - Solicitation/Contract Form**

Technical Training Instructional Services for Expeditionary Warfare Training Group Pacific (EWTGPAC)

The Contractor shall perform to the standards in this contract. (reference Performance Work Statement in Section C). Partial services are currently being satisfied under task order number N0017823F3012.

This contract term will be a base period of one (1) year with four (4) one-year option periods. The anticipated award date is 01 May 2026. The resulting Task Order is anticipated to be Firm Fixed Price (FFP.)

## Section B - Supplies or Services & Prices or Costs

### Additional Information/Notes

| Item                  | Supplies/Service                                                                                                                                    | Quantity | Unit   | Unit Price | Amount |
|-----------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------|----------|--------|------------|--------|
| 5000                  | Base Year - Technical Training Instructional Services in accordance with SOW in Section C.<br><br>Pricing Arrangement: Firm Fixed Price             | 12       | Months |            |        |
| Option Line Item 5001 | Base Year (Surge) - Technical Training Instructional Services in accordance with SOW in Section C.<br><br>Pricing Arrangement: Firm Fixed Price     | 574      | Hours  |            |        |
| Option Line Item 5100 | Option Year 1 - Technical Training Instructional Services in accordance with SOW in Section C.<br><br>Pricing Arrangement: Firm Fixed Price         | 12       | Months |            |        |
| Option Line Item 5101 | Option Year 1 (Surge) - Technical Training Instructional Services in accordance with SOW in Section C.<br><br>Pricing Arrangement: Firm Fixed Price | 574      | Hours  |            |        |
| Option Line Item 5200 | Option Year 2 - Technical Training Instructional Services in accordance with SOW in Section C.<br><br>Pricing Arrangement: Firm Fixed Price         | 12       | Months |            |        |
| Option Line Item 5201 | Option Year 2 (Surge) - Technical Training Instructional Services in accordance with SOW in Section C.<br><br>Pricing Arrangement: Firm Fixed Price | 574      | Hours  |            |        |
| Option Line Item 5300 | Option Year 3 - Technical Training Instructional Services in accordance with SOW in Section C.<br><br>Pricing Arrangement: Firm Fixed Price         | 12       | Months |            |        |
| Option Line Item 5301 | Option Year 3 (Surge)- Technical Training Instructional Services in accordance with SOW in Section C.<br><br>Pricing Arrangement: Firm Fixed Price  | 574      | Hours  |            |        |
|                       |                                                                                                                                                     |          |        |            |        |

|                          |                                                                                                                                                        |     |        |  |  |
|--------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------|-----|--------|--|--|
| Option Line Item<br>5400 | Option Year 4 - Technical Training Instructional Services<br>in accordance with SOW in Section C.<br><br>Pricing Arrangement: Firm Fixed Price         | 12  | Months |  |  |
| Option Line Item<br>5401 | Option Year 4 (Surge) - Technical Training Instructional<br>Services in accordance with SOW in Section C.<br><br>Pricing Arrangement: Firm Fixed Price | 574 | Hours  |  |  |
| 7000                     | Base Year - Other Direct Cost - Travel<br>NTE \$171,664.00<br><br>Pricing Arrangement: Cost No Fee                                                     | 1   | Lot    |  |  |
| Option Line Item<br>7100 | Option Year 1 - Other Direct Cost - Travel<br>NTE \$175,097.28<br><br>Pricing Arrangement: Cost No Fee                                                 | 1   | Lot    |  |  |
| Option Line Item<br>7200 | Option Year 2 - Other Direct Cost - Travel<br>NTE \$178,599.23<br><br>Pricing Arrangement: Cost No Fee                                                 | 1   | Lot    |  |  |
| Option Line Item<br>7300 | Option Year 3 - Other Direct Cost - Travel<br>NTE \$182,148.84<br><br>Pricing Arrangement: Cost No Fee                                                 | 1   | Lot    |  |  |
| Option Line Item<br>7400 | Option Year 4 - Other Direct Cost - Travel<br>NTE \$185,814.63<br><br>Pricing Arrangement: Cost No Fee                                                 | 1   | Lot    |  |  |

## Section C - Description/Specifications/Statement of Work

### PERFORMANCE WORK STATEMENT (PWS)

Technical Training Instructional Services For Expeditionary Warfare Training Group Pacific (EWTPAC) Naval Surface Fire Support Training Specialists

#### Part I

#### Introduction/Background/Objective/Scope

1.0 General: This is a non-personal services contract to provide Technical Training Instructional Services. The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.

1.1 Description of Services/Introduction: The Contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and non-personal services necessary to perform Technical Training Instructional Services as defined in this Performance Work Statement except for those items specified as government furnished property and services. The Contractor shall perform to the standards in this contract.

1.2 Background: Expeditionary Warfare Training Group Pacific (EWTPAC) trains, educates and advocates doctrine, tactics and procedures of Naval Amphibious Warfare to joint and combined forces to enhance operational commanders' ability to affect operations from the sea. The Fires Training Division within the Training Department of EWTPAC provides relevant Basic through Intermediate Training (both Individual and Team Training) in naval fires employment in support of Surface Force Readiness, Training and Exercise Manuals, and doctrinal Amphibious Warfare requirements. The mission of the Naval Surface Fire Support (NSFS) and Naval Fire Control System (NFCS) Focused Team Training (FTT), Mobile Team Training (MTT), 2-Day Challenges (2DC), and Watch Team Continuity Critical (WTCC) training is to train cruiser and destroyer gunfire teams and combat system training teams in tactics, techniques, and procedures (TTP) to conduct NSFS and to certify ship NSFS platform capability.

1.3 Objective: The objective of this effort is to provide Technical Training Instructional Services to the EWTPAC Fires Training Division responsible for execution of training with a focus on the NSFS and NFCS FTT, MTT, 2DC, and WTCC courses of instruction.

1.4 Scope: Technical Training Instructional Services to EWTPAC NSFS and NFCS training providing ships' NSFS, NFCS, and Combat Systems Training Team (CSTT) personnel with classroom and watch-station instruction onboard ships and addressing NSFS engagement procedures and techniques tailored to their specific role, function, and responsibilities using installed shipboard equipment. Provide and evaluate real-time NSFS engagement drills, identify and address procedural errors, and rate ship capability to conduct NSFS. EWTPAC requires contractor support to facilitate the NSFS training continuum implementation mandated by Surface Force Training and Readiness Manual (SFRM) requirements. Support services requirements are as follows:

1.4.1 Training Services. This requirement is for contractor services to provide full spectrum hands-on training, mentorship, remediation, and evaluation as well as provide expertise and perspective to resolve capabilities gaps in doctrine, organization, training, leadership & education, personnel, and facilities pertaining to NSFS and NFCS Training. Contractor services will engage and support curriculum improvement in related Fires Division courses when required to synchronize them with Shipboard MTT content and curriculum. Contractor services provide classroom podium instruction/trainer support/curriculum maintenance, and operation of embedded shipboard training systems on U.S. Navy Cruisers and Destroyers. Assigned contractors will deliver high fidelity training, practical exercises, and provide performance observation/evaluation at shipboard and/or shore-based training facilities to both train the audience and complete the training feedback loop and formulate course revisions for implementation. They

will initiate proposals for EWTGPAC and assist as required to integrate new technical training equipment, tactics, techniques and procedures as they become available.

1.4.2 Curriculum Maintenance and Instruction. The services obtained will result in delivery of current curricula in conformance with NAVEDTRA series 130, 134B, and 135C, complete podium presentation, practical application, and performance evaluation required for relevant high fidelity team training to SFRTM standards.

1.4.3 Special Qualifications. The Contractor is responsible for ensuring all employees are fully qualified to perform contracted functions in a shipboard environment and that they possess and maintain current qualifications and professional certifications as delineated in personnel qualifications section during the execution of this contract.

## **Part II**

### **General Requirements/General Information**

2.0 Period of Performance. The period of performance shall be for one (1) Base Year of 12 months of Instructional Services each (12 months total), with up to four (4) 12-month option years.

2.1 Place of Performance. Work management under this contract will be performed at:

Expeditionary Warfare Training Group, Pacific  
3423 Guadalcanal Road  
San Diego, CA 92155-5099

The work shall be performed at government facilities at EWTGPAC at Coronado, CA and on U.S. Naval Vessels in San Diego, CA; Everett, WA; Pearl Harbor, HI; Yokosuka, JA; or other locations where U.S. Naval Vessels are berthed.

2.2 Hours of Operation. The Contractor is responsible for conducting business (8 hours per day on average), between the hours of 6:00 AM and 6:00 PM Local Time Monday thru Friday except Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government-directed facility closings. Based on shipboard operational needs, there may be instances of training events that are executed after 6:00 PM on a normal workday, or on Saturday and/or Sunday: in these cases, the Contractor is expected to conduct business on these days, to be offset with equal reductions from the preceding or following workweek as appropriate. For other than firm fixed price contracts, the Contractor will not be reimbursed when the government facility is closed for the above reasons. The Contractor must always maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential.

2.3 Recognized Holidays. Contractor is not required to perform services on 11 specified Federal holidays. Any holidays hours affected by services or travel will be directly compensated:

New Year's Day  
Martin Luther King Jr.'s Birthday  
President's Day  
Memorial Day  
Independence Day  
Juneteenth  
Labor Day  
Columbus Day  
Veteran's Day  
Thanksgiving Day  
Christmas Day

2.4 Type of Contract. This is a "Firm Fixed Price" Contract.

2.5 Performance Management. The contractor shall be responsible for handling the responsibilities of contract execution and coordination of team resources. Task leads may be appointed from any team member, however, technical cognizance over performance always remains with the prime contractor. The prime contractor is responsible for all assigned resources, performance quality (QASP compliance), and deliverables associated with this PWS. The skills and qualifications of the labor force employed to respond to the requirements defined in this PWS are at the discretion of the contractor. The contractor shall be responsible for staffing, competency training, guidance, and supervision of qualified personnel performing on this contract. The government expects the contractor's solution to represent a collaboration capable of fulfilling Navy training objectives, while avoiding inherently governmental functions.

2.6 Contracting Officer Representative (COR). The COR will be identified by separate letter. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: validate the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, specifications; monitor Contractor's performance and notify both the Contracting Officer and Contractor of any deficiencies; coordinate availability of government furnished property; and provide site entry of contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order.

2.7 Government Responsibilities and Interface. The COR will have technical oversight and will execute responsibilities related to performance, deliverables acceptance, invoice certification, and coordination of work effort. The Regional Contracting Office Procuring Contracting Officer will interface with the prime contractor's representative for payment and administration issues.

2.8 Quality Control. The Contractor shall develop and maintain an effective quality control program to ensure services are performed in accordance with this PWS. The contractor shall provide the necessary resources and infrastructure to manage the requirement as defined in the PWS. The selection of subcontractors and other business considerations is discretionary on the part of the contractor, so long as they conform to the labor categories, skill, qualification and capabilities, pricing, and performance terms and conditions that bind. The contractor shall establish processes and assign appropriate management and support resources to administer the resulting contract and to interface with the government's COR. The Contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The Contractor's quality control program is how the Contractor ensures that all work complies with the requirement of the contract. The Quality Control Plan (QCP) will be included as an evaluation factor and therefore shall be submitted with the proposal in response to all Request(s) for Proposal (RFP). Proposed changes to the QCP after contract award shall be submitted to the Contracting Officer and COR for approval.

2.9 Quality Assurance. The government shall evaluate the Contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government must do to ensure that the Contractor has performed in accordance with the performance standards. The QASP defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s). The QASP shall include staffing actions, subcontractor management, finance, and government interface with EWTGPAC Schoolhouse staff. At all times, the prime contractor shall be responsible for the actions of their teaming partners and subcontractors. The government will not consider the role of contract support staff as direct charge elements of performance.

2.10 Post-Award Conference/Periodic Progress Meetings. The Contractor agrees to attend any post-award conference convened by the contracting activity or contract administration office in accordance with Federal Acquisition Regulation Subpart 42.5. The contracting officer, COR, and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings the contracting officer will apprise the Contractor of how the government views the Contractor's performance and the Contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the government.

2.11 Key Personnel. The government considers the following personnel key personnel: Three (3) Training Specialists, two of which will possess experience as a CG or DDG E-5 to E-8 Non-AEGIS Fire Controlman with experience in the MK 86 and/or MK 34 Gun Weapon System (GWS) with specific emphasis on NSFS. The Contractor shall provide a contract manager who shall be responsible for the performance of the work. The name of this person and an alternate who shall act for the Contractor when the manager is absent shall be designated in writing to the Contracting Officer and COR. The contract manager or alternate shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract.

2.11.1 Key Personnel Qualifications and Requirements: Section L key personnel qualification incorporated herein. The following qualifications and requirements apply to the Training Specialist key personnel:

2.11.1.1 Graduation from the Navy basic instructor course, Marine Corps Formal School Instructor course (M10XRGM) or an equivalent military instructor certification course

2.11.1.2 Excellent written and verbal communication skills and demonstrated competence in public speaking and instructional presentation



2.11.1.3 Demonstrated experience working with curriculum in a Navy training environment, including curriculum administration and curriculum development.

2.11.1.4 Possess a minimum of two (2) years of experience as an instructor, with experience in instructional design.

2.11.1.5 Possess a minimum of two (2) years' experience as a member of a certified NSFS team assigned to a US Navy Cruiser (CG) or Destroyer (DDG), or a minimum of two (2) years assigned as an NSFS instructor at EWTGPAC or EWTGLANT.

2.11.1.6 Exhibit a high degree of judgment, resourcefulness, originality, and the ability to formulate training solutions for equipment/systems obsolescence caused by changing fleet systems, technology and procedures.

2.11.1.7 Possess the ability to operate independently, planning, scheduling and executing projects and programs, and must have the capability to deliver professional, complete, and accurate, standardized instruction via instructional products.

2.11.1.8 Possess the ability to translate taskings into specific actions and execute them in a manner that achieves the objectives within scheduled guidance.

2.11.1.9 Possess the ability to perceive emerging problems and have the initiative and knowledge to take appropriate action. Work is reviewed for broad program goals.

2.11.1.10 Be able to travel away from the normal duty station on military or commercial aircraft. Training events which require travel are expected to occur approximately two - three times per month, on average. Travel will typically occur during pre- and post-training event weekends, with training normally consisting of up to five (5) consecutive training days. In some instances, back-to-back training events away from the geographic area of the normal duty station will require personnel to remain on station between training events.

2.11.1.11 Perform required training in a shipboard environment. Contractors will execute training in a shipboard classroom and shipboard combat information center (CIC) environment. While conducting all shipboard training all instructors will be required to remain standing for most/all of the training period.

2.11.1.12 At least two of the key personnel assigned to this effort must possess experience as a CG or DDG E-5 to E-8 Non-AEGIS Fire Controlman with experience in the MK 86 or MK 34 Gun Weapon System (GWS) as a member of ship's company assigned to at least one of the following roles: Gun Console Operator (GCO), Gun Safety, or Combat Systems Training Team member for gun system employment duties during Naval Surface Fire Support operations.

2.11.1.13 At least two of the key personnel assigned to this effort must possess experience in the MK 86 or MK 34 equipment operation and associated equipment interfaces/network management to train members of a

Combat Information Center (CIC) Watch Team to provide Command and Control (C2) for Technical and Tactical Operations.

2.11.1.14 At least two of the key personnel assigned to this effort must be capable of providing thorough classroom instruction for GWS theory and effective GWS practical lab environment instruction to train students to set up Gun Weapons System for proper utilization of the NGFS sub-mode for all applicable AEGIS baselines.

2.12 Non-Key Personnel. The following personnel are considered non-key personnel by the government: up to three (3) additional Training Specialists.

2.12.1 The non-key personnel qualifications and requirements shall meet all qualifications and requirements specified in PWS Part II, paragraphs 2.11.1.1 through 2.11.1.11, and, at the government's discretion, may be required to meet additional requirements specified in PWS Part II, paragraphs 2.11.1.12 through 2.11.1.14

2.12.2 The Government reserves the right during contract performance to require resumes for non-key personnel to ensure the qualifications of the individual comply with qualifications and requirements set forth in PWS Part II, paragraph 2.12.1, as well as all other applicable qualifications and requirements in the PWS. The work history of each Contractor employee shall contain experience directly related to the tasks and functions to be assigned. If the Contracting Officer questions the qualifications or competence of any individual proposed or performing under the task order, the burden of proof to substantiate that individual's qualifications as prescribed herein shall rest with the Contractor. The Contractor must have the personnel, organization, and administrative control necessary to ensure that all services performed meet all requirements.

2.12.3 The government reserves the right to request none, any, or all non-key personnel during any contract option year, and the government also reserves the right to increase or reduce the number of non-key personnel during any contract option year, based on the needs of the government. In all cases of non-key personnel increase or reduction, the government will inform the contractor as early as practicable to give the contractor as much time as possible to facilitate non-key personnel transition into or out of support for this effort.

2.13 Additional Requirements. All contract personnel will meet the following additional requirements:

2.13.1 Technical Performance Quality. The contractor shall be responsible for establishing a staff complement capable of handling the responsibilities of contract execution and coordination of team resources as defined in the PWS.

2.13.2 EWTGPAC Instructor Qualification. All contractors shall meet all requirements of EWTGPAC's instructor qualification process, which includes:

2.13.2.1 Validation, by EWTGPAC's Learning Standards Department, the contractor has attended and graduated from the Navy basic instructor course, Marine Corps Formal School Instructor course (M10XRGM) or an equivalent military instructor certification course

2.13.2.2 Receive satisfactory technical evaluations, from a certified course instructor, on a minimum of two separate presentations as an instructor trainee. These will be used to evaluate the instructor's knowledge of the subject matter and shall be done during class in session.

2.13.2.3 Complete all EWTGPAC instructor certification requirements per EWTGPAC's Academics Department and receive final instructor certification from the Academics Department head and Director of Training. EWTGPAC's Learning Standards Department will maintain all administration information that is required to initially certify and maintain certification for all instructors

2.13.3 EWTGPAC Instructor Requirements. After designation as an EWTGPAC instructor, all contractors will meet EWTGPAC post-qualification requirements, which include valuation at least once semi-annually by a representative of the Academics Department, the Director/Deputy Director of Training, or a certified Fires Division instructor. Additional evaluations, both in areas of technical expertise and instructor technique, may be conducted at any time as deemed necessary by the Director/Deputy Director of Training, Fires Division head, or course manager. Instructors will typically be evaluated in a shipboard environment (normal training environment), but this can be adjusted to a non-shipboard training area at the discretion of the Fires Training Division Head.

2.14 Deliverables. The contractor shall provide all documents to the Contracting Officer's Representative (COR) for review. Unless otherwise agreed to by the parties, the government may provide written acceptance, comments, and/or change requests upon receipt of all deliverables. If written acceptance, comments, and/or change request are not provided within five (5) business days, the deliverables shall be deemed acceptable as submitted. If the government provides comments and/or change requests, the contractor shall have five (5) business days from receipt of the government correspondence to incorporate the comments and/or change requests and resubmit the deliverable.

2.14.1 Monthly Program, Status, and Management Report. The contractor shall submit a monthly progress report to the COR and the Contracting Officer or their designee, no later than the 10th day of the following month for the work accomplished from the first (1st) through the final calendar day of the previous month on the status of all tasks. This report shall be provided in electronic form using MS Office applications. The monthly report shall include, at a minimum:

2.14.1.1 Contractor's name, contract number, period that the report covers

2.14.1.2 Comparison of planned and actual task order performance

2.14.1.3 Task progress during the past month, plans for the forthcoming month

2.14.1.4 Problems or delays (actual or anticipated) requiring Government action and summary of action required.

2.14.1.5 Travel costs, including purpose of trips, duration, and related actions.

2.14.1.6 Personnel turnover, utilization of subcontractors, and future staffing projections

2.14.1.7 Deliverables (by task) accepted or rejected, inclusive of the final day of the month as well as the reason for rejection and timeline for resubmission.

2.15 Data, Software, and Intellectual Property Rights. All reports, materials (including, but not limited to, all training and training-related materials including all evaluations and evaluation criteria, computer software /applications and hardware, source code, interfaces, tools, works, and other related items) data, information and all electronic/digital files and other items described herein, and any other items (hereinafter referred to individually or collectively as the Work or Works), and all intellectual property rights in or to such Works , in whatever form, created, generated, produced or provided under, or as a result of, this PWS/Contract shall become the property of the U.S. Government/Navy, i.e., the U.S. Government/Navy shall be the owner of all of these Works and all intellectual property rights in or to these Works. Therefore, any restricted data rights, information, software, materials and/or items including, but not limited to, the contractor's or a Third-Party's proprietary data, information, software, materials, and/or items must not be used under this PWS/Contract without the specific written approval by the Contracting Officer prior to the start of any work.

2.16 Use of Works. Except as provided in writing by the Contracting Officer, no Work (as defined in the Data, Software, and Intellectual Property Rights paragraph) material and /or other item created, generated, produced or provided under, or as a result of, this PWS/Contract shall be used by the Contractor or any of its employees /agents, subcontractors and/or representatives, for any purpose other than for the support and performance of this PWS/Contract. Therefore, the Contractor is obligated to protect the Works from unauthorized use and shall incorporate this paragraph in each of its contracts/subcontracts associated with the good and/or services provided under this PWS/Contract.

2.17 Travel and ODC Management

2.17.1 The contractor shall provide for travel and ODC Management in accordance with the PWS. Travel authorized in support of the requirements identified shall be conducted in accordance with the Federal Acquisition Regulations (FAR) and the Joint Travel Regulations (JTRs). Travel authorization requires pre-approval of the COR prior to incurring costs. Travel shall be reconciled monthly and reported to the COR. Costs incurred without authorization will not be reimbursed. Local travel will not be reimbursed by the Government.

2.17.2 The anticipated travel planned in support of this contract is provided in Table 1 below. The COR shall approve, in advance, any required changes to the location of the events that require travel.

**Anticipated Travel (per contract year)**

| Destination           | Purpose                        | # of Trips | # Personnel | Estimated Length of Trip |
|-----------------------|--------------------------------|------------|-------------|--------------------------|
| Naval Station Everett | NSFS / NFCS MTT                | 3          | 2           | 7 days                   |
| Yokosuka, Japan       | NSFS / NFCS MTT                | 14         | 2           | 8 days                   |
| Pearl Harbor          | NSFS / NFCS MTT                | 12         | 2           | 7 days                   |
| Norfolk, VA           | Course Curriculum Review Board | 1          | 2           | 5 days                   |

Table 1

**2.18 Security Requirements.**

2.18.1 Security Clearance: Contractor personnel performing work under this contract shall have a "Secret" level clearance at time of the proposal submission and must maintain the level of security required for the duration of the contract.

2.18.1 Physical Security: The Contractor shall be responsible for safeguarding all government equipment, information, and property provided for contractor use. At the close of each work period, government facilities, equipment, and materials shall be secured.

**PART III**

**GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES**

3.1 Services: The Government will provide Information Technology (IT) support, security support for assistance with badging, Force Protection/Anti-Terrorism (FP/AT), academic support, and administrative support.

3.2 Facilities: The Government will provide furnished workspace on site to include standard office supplies, document reproduction capability, and computer resources including access to terminals, printers, software, data and communication networks.

3.3 Utilities: All utilities in the facility will be available for the Contractor's use in performance of the tasks. The Contractor shall be responsible for operating under conditions that preclude the waste of utilities.

3.4 Equipment: The Contractor will have access to all equipment associated with NSFS training and all Fires Division equipment, academic databases, spaces and material considered common use for NSFS courses and personnel. Additionally, smart boards, scanners, fax machines, printers, lighting and sound will be available for the Contractor's use.

3.5 Materials: Command Orders and Instructions will be provided for use, including Security and Safety regulations.

## **PART IV**

### **CONTRACTOR FURNISHED ITEMS AND SERVICES**

4.1 General: It is not anticipated the contractor will be working in any off-site location on a regular, recurring basis, but only under extraordinary circumstances when the government worksite is not available. The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Part 3 of this PWS.

4.2 Secret Clearance: The Contractor's employees, performing work in support of this contract, shall maintain a SECRET security clearance from the appropriate Department of Defense/Navy clearance adjudication organization.

## **PART V**

### **SPECIFIC TASKS**

5.1 Basic Services. The Contractor shall provide Technical Training Instructional Services to the Fires Training Division within the Training Department of EWTGPAC.

5.2 Provide classroom and laboratory (Combat Information Center--CIC) Team Trainer Instruction. Provide instruction for forty NSFS/NFCS Team Training events, each event lasting between one (1) and five (5) days, per calendar year in accordance with NAVEDTRA 130, 134B, and 135C (series).

5.2.1 Provide instruction by executing classroom and laboratory (Combat Information Center) training and evaluation, observation, and mentorship specific to NSFS and NFCS tactics, techniques, and procedures (TTP) to include chart navigation, target plotting, proper R/T communications, GWS setup procedures, basic gunnery principles and characteristics, and mission execution.

5.2.2 Provide instruction in all applicable systems and programs with thorough functional knowledge, including recognition of proper system configuration during Naval Surface Fire Support training evolutions, for the following: MK 34 GWS and/or MK 86 GWS, Mk 160 GWS, Naval Fires Control System (NFCS), Computer Aided Dead Reckoning Trace (CADRT), Multi-Function Plot (MFP), Parallel Motion Protractor (PMP) arm, and paper chart use.

5.2.3 Assess student performance against prescribed performance standards, evaluating written and practical evaluations and examinations, providing feedback on achievement of knowledge and skill objectives, and providing remediation as appropriate.

5.2.4 Support EWTGPAC instructors by providing training/mentorship to the EWTGPAC Fires Division active-duty personnel in the execution of the contractor's duties outlined in this PWS.

5.2.5 Prepare designated classroom and lab (CIC) with all appropriate media, equipment, reference material, and student material and handouts prior to each course convening. This includes assisting EWTGPAC instructors with student check-in and graduation, maintaining and updating initial and final class rosters, and liaising with EWTGPAC's Academics Department for all student training and graduation administration.

5.2.6 Prepare Course "After Instruction Reports" (AIRs) upon the completion of each course per the EWTGPAC Academic Standard Operating Procedure (SOP).

5.3 Provide Curriculum Development and Curriculum Maintenance Support.

5.3.1 Assist EWTGPAC Course Manager/Supervisors in maintaining the curriculum to ensure currency and relevancy in accordance with feedback from After-Instruction Reports, fidelity with systems and procedures per observation of shipboard evolutions, in compliance with USN directives, and other internal/external feedback in accordance with the NAVEDTRA series and locally prepared instructions (available via EWTGPAC's Learning Standards Department)

5.3.2 Assist in the development and revision of the NSFS curriculum using on-line/web-based authoring tools. The Contractor shall use Authoring Instructional Material (AIM II), or a Navy-designated replacement system, to produce Master Lesson Files that include objectives, lesson guides that are sequenced by objectives, student guides, media that is used in the classroom, tests that measure student's knowledge and performance, and supporting "Front Matter" and reference material.

5.3.3 Review and assist in development and update of instructional media products that fulfill course objectives and are aligned with lesson topics and course content, using PowerPoint, embedded videos, simulations /representations, and other approved media. The Contractor shall provide recommended updates to existing media and develop new media to support Master Lesson Files through interaction with EWTGPAC subject matter experts, schoolhouse counterparts, and target audience leadership.

5.3.4 Review and assist in the development of course test banks and performance evaluations for alignment with course content and objectives compliant with fleet regulations and standards. The Contractor shall provide recommended updates to existing performance and knowledge tests and develop new test questions for inclusion into Master Lesson Files through interaction with EWTGPAC subject matter experts, schoolhouse counterparts, target audience leadership, and Instructional System Specialists.

5.3.5 Review and assist in the development of course control documents and curriculum front matter, making recommendations to the Course Manager and the Instructional System Specialist(s) on changes to content based on new training and readiness standards.

5.3.6 Review reference publications, doctrine and technical manuals to identify jobs, duties and tasks for use in updating curriculum for use in the classroom.

#### 5.4 Provide Other Instruction and Course Support

5.4.1 Identify any issues for further analysis for the NSFS Course of Instruction. The Contractor shall track any action items on a common access automated data processing spreadsheet such as Microsoft Excel or other specified compliant format.

5.4.2 Provide input to the Chain of Command for Situation Reports (SITREPS) and quarterly production reports to the command leadership and higher headquarters.



5.4.3 Make recommendations on revisions to curriculum and inform discussions at Navy Formal Course Reviews (FCR), Course Curriculum Review Boards (CCRB), or other such course reviews as required by NAVEDTRA or Fires Department direction.

## **PART VI**

### **APPLICABLE PUBLICATIONS**

6.0 Applicable Publications (Current Editions).

6.1 The Contractor must abide by all applicable regulations, publications, manuals, and local policies and procedures:

6.1.1 NAVEDTRA 130B Task Based Curriculum Development Manual

6.1.2 NAVEDTRA 132 Navy School Testing Program Management Manual

6.1.3 NAVEDTRA 133 Human Performance Requirements Review Management Manual

6.1.4 NAVEDTRA 134A Navy Instructor Manual

6.1.5 NAVEDTRA 135C Navy School Management Manual

6.1.6 NAVEDTRA 136 Integrated Learning Environment Course Development and Life Cycle Maintenance

6.1.7 NAVEDTRA 137 Job Duty Task Analysis Process Manual

6.1.8 NAVEDTRA 10500 Catalog of Navy Training Courses

6.1.9 EWTGPACINST 1650.7G Instructor of the Quarter/Year

6.1.10 NETCINST 1500.28 Master Training Specialist (MTS)

6.1.11 EWTGPACINST 1650.2C-Master Training Specialist (MTS)

6.1.12 EWTGPACINST 1540.28 Academic Instructional Evaluation Plan

6.1.13 EWTGPACINST 1540.10, Instructor Certification and Evaluation Program

6.1.14 EWTGPACINST 1500.2 Instructional Staff Training and Professional Development

6.1.15 EWTGPACINST 1510.1D Student Management

6.1.16 OPNAVINST 3500.39B ORM

6.1.17 COMNAVSURFPAC/COMNAVSURFLANT INSTRUCTION 3502.7 (Series) Surface Force Training and Readiness Manual

6.1.18 ATP 4(F) Allied Naval Gunfire Support

6.1.19 ATP 8(B) Vol 2 - Tactics, Techniques and Procedures for Amphibious Operations

6.1.20 NTTP 3-02.2/MCWP 3-31.6 - Supporting Arms in Amphibious Operations

6.1.21 NWP 3-30.32 - Surface Ship Gunnery

6.1.22 ACP 125 Radio Telephone Procedures

6.1.23 ACP 125 U.S. Supplement II - Radiotelephone Procedures for the Conduct of Artillery and Naval Gunfire

6.1.24 JP 1-02 - Department of Defense Dictionary of Military and Associated Terms

6.1.25 MCWP 3-16 - Fire Support Coordination in the Ground Combat Element

## **Requirements**

Technical Training Instructional Services for Expeditionary Warfare Training Group Pacific (EWTGPAC)

## **Section D - Packaging and Marking**

### **1.0 GENERAL.**

There are no packaging or marking requirements for the services to be provided in response to the Task Order unless otherwise indicated by the Contracting Officer Representative (COR). All requirements for packaging and marking of documents associated with these services shall be packaged, packed and marked in accordance with Section D of the MAC contract.

### **2.0 DATA PACKAGE LANGUAGE**

Not Applicable.

### **3.0 MARKING OF REPORTS**

Not Applicable.

## **Section E - Inspection and Acceptance**

Inspection and acceptance shall be performed in accordance with the basic MAC contract. In accordance with section E of the MAC contract, all Firm-Fixed-Price MAC terms are incorporated at the Task Order level for any ordered items. These include the following clauses from Section E of the MAC contract:

52.246-4 Inspection of Services-Fixed-Price (Aug 1996)

52.247-34 F.O.B. Destination (Nov 1991)

252.246-7000 Material and Inspection Receiving Report (Mar 2008)

## Section F - Deliveries or Performance

Overall Contract Delivery Period

Contractor  
Destination

| Line Item                | Delivery Schedule                                  | Quantity     | Address and POC                                                                                                                                                                                                                                                                                                                    |
|--------------------------|----------------------------------------------------|--------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 5000                     | Delivery Period<br>From 01 May 2026 to 30 Apr 2027 | 12<br>Months | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES<br><br>Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil<br>Telephone: (619) 437-5236 |
| Option Line Item<br>5001 | Delivery Period<br>From 01 May 2026 to 30 Apr 2027 | 574<br>Hours | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES<br><br>Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil<br>Telephone: (619) 437-5236 |
| Option Line Item<br>5100 | Delivery Period<br>From 01 May 2027 to 30 Apr 2028 | 12<br>Months | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES<br><br>Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil<br>Telephone: (619) 437-5236 |
| Option Line Item<br>5101 | Delivery Period<br>From 01 May 2027 to 30 Apr 2028 | 574<br>Hours | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES<br><br>Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil<br>Telephone: (619) 437-5236 |

|                          |                                                       |              |                                                                                                                                                                                                                                                                                                                                    |
|--------------------------|-------------------------------------------------------|--------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Option Line Item<br>5200 | Delivery Period<br>From 01 May 2028 to 30 Apr<br>2029 | 12<br>Months | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES<br><br>Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil<br>Telephone: (619) 437-5236 |
| Option Line Item<br>5201 | Delivery Period<br>From 01 May 2028 to 30 Apr<br>2029 | 574<br>Hours | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES<br><br>Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil<br>Telephone: (619) 437-5236 |
| Option Line Item<br>5300 | Delivery Period<br>From 01 May 2029 to 30 Apr<br>2030 | 12<br>Months | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES<br><br>Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil<br>Telephone: (619) 437-5236 |
| Option Line Item<br>5301 | Delivery Period<br>From 01 May 2029 to 30 Apr<br>2030 | 574<br>Hours | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES<br><br>Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil<br>Telephone: (619) 437-5236 |
| Option Line Item<br>5400 | Delivery Period<br>From 01 May 2030 to 30 Apr<br>2031 | 12<br>Months | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES<br><br>Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil                              |

|                          |                                                       |              |                                                                                                                                                                                                                                                                                                                                    |
|--------------------------|-------------------------------------------------------|--------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                          |                                                       |              | Telephone: (619) 437-5236                                                                                                                                                                                                                                                                                                          |
| Option Line Item<br>5401 | Delivery Period<br>From 01 May 2030 to 30 Apr<br>2031 | 574<br>Hours | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES<br><br>Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil<br>Telephone: (619) 437-5236 |
| 7000                     | Delivery Period<br>From 01 May 2026 to 30 Apr<br>2027 | 1 Lot        | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES<br><br>Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil<br>Telephone: (619) 437-5236 |
| Option Line Item<br>7100 | Delivery Period<br>From 01 May 2027 to 30 Apr<br>2028 | 1 Lot        | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES<br><br>Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil<br>Telephone: (619) 437-5236 |
| Option Line Item<br>7200 | Delivery Period<br>From 01 May 2028 to 30 Apr<br>2029 | 1 Lot        | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES<br><br>Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil<br>Telephone: (619) 437-5236 |
| Option Line Item<br>7300 | Delivery Period<br>From 01 May 2029 to 30 Apr<br>2030 | 1 Lot        | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES                                                                                                                  |

|                          |                                                       |       |                                                                                                                                                                                                                                                                                                                                    |
|--------------------------|-------------------------------------------------------|-------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|                          |                                                       |       | Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil<br>Telephone: (619) 437-5236                                                                                                                                                                                                                          |
| Option Line Item<br>7400 | Delivery Period<br>From 01 May 2030 to 30 Apr<br>2031 | 1 Lot | Service Performance Site<br>DoDAAC: N63018<br>CountryCode: USA<br>EXP WARFARE TRAINING GROUP, PACIFI<br>EWTGPAC COMM 619 437 2948, 3423 GUADALCANAL ROAD,<br>BLDG 15<br>SAN DIEGO, CA 92155-5099<br>UNITED STATES<br><br>Angelica Ramirez, Request Owner<br>Email: angelica.ramirez22.mil@us.navy.mil<br>Telephone: (619) 437-5236 |



## Section G - Contract Administration Data

Contracting Officer Representative  
Brian Harbison, N00244  
3985 Cummings Road  
San Diego, CA 92136-4200  
brian.k.harbison.mil@us.navy.mil  
619-437-3726

CONTRACT ADMINISTRATION FUNCTIONS - Contract Administration Functions section will be completed upon award. In addition to the Contract Administration functions authorized by FAR 42.302, the Administrative Contracting Officer (ACO) is authorized to perform the following administrative functions as checked below:

- ☐ Negotiate or negotiate and execute supplemental agreements incorporating contractor proposals resulting from change orders issued under the Changes clause. Before completing negotiations, coordinate any delivery schedule change with the Principal Contracting Officer (PCO).
- ☐ Negotiate prices and execute priced exhibits for unpriced orders issued by the PCO under basic ordering agreements.
- ☐ Negotiate or negotiate and execute supplemental agreements changing contract delivery schedules.
- ☐ Negotiate or negotiate and execute supplemental agreements providing for the deobligation of unexpended dollar balances considered excess to known contract requirements.
- ☐ Issue amended shipping instructions and, when necessary, negotiate and execute supplemental agreements incorporating contractor proposals resulting from these instructions.
- ☐ Negotiate changes to interim billing prices.
- ☐ Negotiate and definitize adjustments to contract prices resulting from exercise of the Economic Price Adjustment Clause.
- ☐ Execute supplemental agreements on firm-fixed price supply contracts to reduce required contract line item quantities and deobligate excess funds when notified by the contractor of an inconsequential delivery shortage, and it is determined that such action is in the best interests of the Government, notwithstanding the default provisions of the contract. Such action will be taken only upon the written request of the contractor and, in no event shall the total downward contract price adjustment resulting from an inconsequential delivery shortage exceed \$250.00 or 5 percent of the contract price, whichever is less.
- ☐ Execute supplemental agreements to permit a change in place of inspection at origin specified in firm fixed-price supply contracts awarded to non-manufacturers, as deemed necessary to protect the Government's interests.
- ☐ Prepare evaluations of contractor performance in accordance with subpart 42.15. Any additional contract administration functions not listed in 42.302(a) and (b), or not otherwise delegated, remain the responsibility of the contracting office.

### CONTRACTUAL AUTHORITY AND COMMUNICATIONS

(a) Functions: The Contracting Officer for this contract is identified on the basic contract. Only the Contracting Officer can change the basic contract, and the Contracting Officer maintains primacy over the contract and all its task orders. The Contracting Officer of this Task Order is a warranted Contracting Officer of the Fleet Logistics Center, San Diego, CA. Unless otherwise noted, all references to "Contracting Officer" in the text of this task order and the basic contract refer to the Task Order Contracting Officer. The Government reserves the right to administratively transfer authority over this task order from the individual named below to another Contracting Officer at any time.

(b) Authority: The Contracting Officer is the only person authorized to approve changes in any of the requirements of this task order and, notwithstanding provisions contained elsewhere in this task order, the said authority remains solely the Contracting Officer's. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer. No order, statement, or conduct of any Government personnel who visit the Contractor's facilities or in any other manner communicates with Contractor personnel during the performance of this task order shall constitute a change under the Changes clause of this task order and no adjustment will be made in the task order price to cover any increase in charges incurred as a result thereof.

Government POC's:

(c) The Task Order Contracting Officer is:  
Name: Michael Luu  
Phone: (619) 556-5905  
Email: michael.t.luu.civ@us.navy.mil

(d) The Task Order Negotiator is:  
Name: Jennifer Stevens  
Phone: (619) 556-9096  
Email: jennifer.k.stevens7.civ@us.navy.mil

(e) Interim Ombudsman for the Fleet Logistics Center, San Diego CA is:  
Name: TBD  
Phone:  
Email:

(f) CONTRACT ADMINISTRATION OFFICE (CAO) is responsible for matters specified in FAR 42.302 and DFARS 242.302 except in those areas otherwise designated herein.  
Assigned DCMA office: TBD

(g) DEFENSE CONTRACT AUDIT AGENCY (DCAA) is responsible for audit verification/provisional approval of invoices and final audit of the contract prior to final payment to the contractor.  
Assigned DCAA office: TBD

(h) PAYING OFFICE is responsible for payment of proper invoices after acceptance is documented.

(i) Contracting Officer Representative (COR) is responsible for:

- a. Liaison with personnel at the Government installation and the contractor personnel on site
- b. Technical advice/recommendations/clarification on the statement of work
- c. The statement of work for delivery/task orders placed under this contract
- d. An independent government estimate of the effort described in the definitized statement of work
- e. Quality assurance of services performed and acceptance of the services or deliverables
- f. Government furnished property
- g. Security requirements on Government installation
- h. Providing the PCO or his designated Ordering Officer with appropriate funds for issuance of the Delivery/Task order and/or Certification of invoice for payment

NOTE: When, in the opinion of the Contractor, the COR requests effort outside the existing scope of the contract (or delivery/task order), the Contractor shall promptly notify the Contracting Officer (or Ordering Officer) in writing. No action shall be taken by the contractor under such direction until the Contracting Officer has issued a modification to the contract or, in the case of a delivery/task order, until the Ordering Officer has issued a modification of the delivery/task order, or until the issue has otherwise been resolved.

THE COR IS NOT AN ADMINISTRATIVE CONTRACTING OFFICER AND DOES NOT HAVE AUTHORITY TO DIRECT THE ACCOMPLISHMENT OF EFFORT WHICH IS BEYOND THE SCOPE OF THE STATEMENT OF WORK IN THE CONTRACT OR DELIVERY /TASK ORDER.

COR Name: TBD

#### SUBSTITUTION OR ADDITION OF PERSONNEL

(a) The offeror agrees to assign to the contract those persons whose resumes, personnel data forms or personnel qualification statements were submitted as required in Section L to fill the requirements of the contract. No substitution or addition of personnel shall be made except in accordance with this clause.

(b) The offeror agrees that during the contract performance period, no personnel substitutions will be permitted unless such substitutions are necessitated by an individual's sudden illness, death or termination of employment. In any of these events, the contractor shall promptly notify the contracting officer and provide the information required by paragraph (d) below.

(c) If personnel for whatever reason become unavailable for work under the contract for a continuous period exceeding thirty (30) working days or are expected to devote substantially less effort to the work than indicated in the proposal, the contractor shall propose a substitution of such personnel, in accordance with paragraph (d) below.

(d) All proposed substitutions shall be submitted, in writing, to the Contracting Officer at least fifteen (15) days (thirty (30) days if a security clearance must be obtained) prior to the proposed substitution. Each request shall provide a detailed explanation of the circumstances necessitating the proposed substitutions, a complete resume for the proposed substitute and any other information required by the Contracting Officer to approve or disapprove the proposed substitution. All proposed substitutes (no matter when they are proposed during the performance period) shall have qualifications equal to or higher than the qualifications of the person being replaced.

(e) In the event a requirement to increase the specified level of effort for a designated labor category, but not the overall level of effort of the contract occurs, the offeror shall submit to the Contracting Officer a written request for approval to add personnel to the designated labor category. The information required is the same as that required for paragraph (d) above. The additional personnel shall have qualifications greater than or equal at least one (1) of the individuals proposed for the designated labor category.

(f) The Contracting Officer shall evaluate requests for substitution and addition of personnel and promptly notify the offeror, in writing, of whether the request is approved or disapproved.

(g) If the Contracting Officer determines that suitable and timely replacement of personnel who have been reassigned, terminated or have otherwise become unavailable to perform under the contract is not reasonably forthcoming or that the resultant reduction of productive effort would impair the successful completion of the contract or the delivery order, the contract may be terminated by the Contracting Officer for default or for the convenience of the Government, as appropriate. Alternatively, at the Contracting Officer's discretion, if the Contracting Officer finds the contractor to be at fault for the condition, he may equitably adjust (downward) the contract price or fixed fee to compensate the Government for any delay, loss or damage as a result of the contractor's action.

**METHOD OF INVOICING:** Invoices for materials/services rendered shall be submitted electronically through Wide Area Work Flow (WAWF) IAW DFARS 252.232-7003.

**DO NOT SEND INVOICES TO THE NAVSUP FLC SAN DIEGO CONTRACTING DEPARTMENT**

**PAYMENT:** The Government anticipates paying fully certified invoices on a Net 30-day basis. Distribution of payment will be made by Electronic Funds Transfer (EFT) to the contractors account established in the System for Award Management (SAM) database. It is the responsibility of the contractor to review such accounts to ensure that payment has been reviewed.

**\*\*\*NOTE\*\*\***

Partial payment for deliveries of material are hereby authorized upon complete inspection and acceptance by the Government for the partial delivery of material specified under this purchase order.

**SALES TAX EXEMPTION:** The Contractor is hereby advised that the United States Government and Agencies are exempt from State and Local Government Tax by virtue of Article 6 of the United States Constitution. No exemption certificate is required.

## Section H - Special Contract Requirements

### APPOINTMENT OF CONTRACTING OFFICER'S REPRESENTATIVE

(a) The Contracting Officer hereby designates the following individual as Contracting Officer's Representative (COR) for this contract: Brian Harbison.

(b) The COR will act as the Contracting Officer's representative for technical matters, providing technical direction and discussion as necessary with respect to the specification or statement of work, and monitoring the progress and quality of contractor performance. The COR is not an Administrative Contracting Officer and does not have authority to take any action, either directly or indirectly, that would change the pricing, quantity, quality, place of performance, delivery schedule, or any other terms and conditions of the task order, or to direct the accomplishment of effort which goes beyond the scope of the statement of work in the task order.

(c) It is emphasized that only a Contracting officer has the authority to modify the terms of the contract, therefore, in no event will any understanding, agreement, modification, change order, or other matter deviating from the terms of the basic contract between the contractor and any other person be effective or binding on the Government. When/if, in the opinion of the contractor, an effort outside the existing scope of the task order is requested, the contractor shall promptly notify the PCO in writing. No action shall be taken by the contractor under such direction unless the PCO or ACO has issued a contractual change or otherwise resolved the issue.

### AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of Government personnel who visit the Contractor's facilities or in any other manner communicate with Contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The Contractor shall not comply with any order, direction or request of Government personnel unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely with the Contracting Officer. In the event the Contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address of the Contracting Officer is: FLCSD Code 220, 3985 Cummings Road, Building 116, San Diego CA 92136-4200

### CONTRACTOR UNCLASSIFIED ACCESS TO FEDERALLY CONTROLLED FACILITIES, SENSITIVE INFORMATION, IT SYSTEMS OR PROTECTED HEALTH INFORMATION

Executive Order 13467, Reforming Processes Related to Suitability for Government Employee, Fitness for Contractor Employees and Eligibility for Access to Classified National Security Information, Homeland Security Presidential Directive (HSPD)-12, requires government agencies to develop and implement Federal security standards for Federal employees and contractors. The 5 CFR 32 Part 157 in concert with DoD Manual 1000.13, Vol 1, implements the Federal Standards.

### APPLICABILITY

This text applies to all DoD sponsored individuals who require CAC eligibility (or login and P/W if acceptable per contract) for: Physical access to DoD facilities or non-DoD facilities on behalf of DoD; Logical access to information systems (whether on site or remotely); or remote access to DoD networks that use only the CAC logon for user authentication, or access to sensitive and protected information. This applies to the Office of the Secretary of Defense (OSD), the Military Departments, the Office of the Chairman of the Joint Chiefs of Staff and the Joint Staff, the Combatant Commands, the Office of the Inspector General of the DoD, the Defense Agencies, the DoD Field Activities and all other organizational entities within the DoD (hereinafter referred to collectively as the "DoD Components"). Each contractor employee providing services at a Navy command under this contract is required to obtain a DoD CAC. Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

### ACCESS TO FEDERAL FACILITIES

Per HSPD-12 and implementing guidance, all contractor employees working at a federally controlled base, facility or activity under this clause will require a DoD CAC. When access to a base, facility or activity is required contractor employees shall in-

process with the Command's Security Manager (CSM) upon arrival to the command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

## ORGANIZATIONAL CONFLICT OF INTEREST

### A. Introduction

~~In accordance with Federal Acquisition Regulations (FAR Part 9.5), both the contractor and the Contracting Officer have an affirmative duty to identify and mitigate actual and potential organizational conflicts of interest. The contract requires the contractor, herein defined, to provide management support, professional consulting services, or other administrative support to the Expeditionary Warfare Training Group Pacific (EWTGP) an activity. The purpose of this "Organizational Conflict of Interest" clause ("OCI Clause" or "clause") is to ensure that the opinions and recommendations provided in this contract are inherently reliable and non-biased; and it will also ensure that information received or developed during performance of this contract will not be improperly exploited to affect competition or released in contravention of the Trades Secret Act or the Privacy Act.~~

### B. Definitions

- ~~(1) "Contractor" means the firm awarded this contract or task order~~
- ~~(2) "Offeror" means any firm engaged in, or having a known or prospective interest in, participating as an offeror in response to any solicitation related to or resulting from the procurement.~~
- ~~(3) "Affiliates" means employees, agents, or officers of the Contractor, its subsidiaries or parent companies, and first tier-subcontractors involved in performance of this contract.~~
- ~~(4) "Interest" means organizational or financial interest.~~
- ~~(5) "Term of this task order" means the period of performance of any task order issued with this restriction, including any extensions thereto; and~~
- ~~(6) "Contracting Officer" is the warranted Government official signing this contract or task order; he or she will be identified by name and will be signing the contract or task order provision incorporating this Organizational Conflict of Interest clause.~~

### ~~B. WARRANTY AGAINST EXISTING CONFLICTS OF INTEREST~~

~~By submitting a proposal in response to this contract, the Contractor warrants that neither it, nor its affiliates, is an interested offeror in any solicitation requiring it to provide products/services to be evaluated under this contract.~~

~~By submitting a proposal in response to this contract, the Contractor warrants that neither it, nor its affiliates, is an interested offeror in any solicitation where access to listed program business sensitive information, budgetary information, or technical documentation may give it an unfair advantage in developing a competitive proposal for that solicitation, or the contractor may be unable or potentially unable to render impartial assistance or advice to the Government, or the Contractor is otherwise not considered objective or impartial. In no event may the contractor refuse to provide services/support in accordance with contract terms because of a potential or actual organizational conflict of interest that could affect future competitive acquisitions.~~

### ~~C. PROSPECTIVE RESTRICTIONS ON CONTRACTING:~~

~~The Contractor agrees that until such time as the current contract is completed, plus one year, neither it nor its affiliates shall not: a) propose in response to any requirements arising out of this contract; b) create for themselves an interest in any contract related to or resulting from the current consulting contract; or, c) consult or discuss with any potential offeror any aspects of work under the contract.~~

### ~~D. RESTRICTIONS ON DISCLOSURE~~

~~The Contractor agrees and understands that it may have access to business sensitive information, to include, but not limited to budget estimates, allocations/appropriations data, project or gram cost estimates, and contract cost estimates. Contractor and its affiliates shall not, under any circumstances, disclose or exploit in any way data used or accessed during the course and scope of this contract. Further, Contractor shall abide by the restrictions imposed by the Privacy Act clause, incorporated herein by reference: FAR 52.224 1, Privacy Act Notification. Far 52.224 2, Privacy Act.~~

~~In accordance with FAR 9.505-4, Contractor may access third party procurement sensitive or trade secret information after execution of an agreement with the third party agreeing to protect the information from unauthorized use or disclosure. Contractor shall immediately notify the Contracting Officer if it has been tasked to access such data; and, it shall promptly~~

~~execute an agreement with any third party providing that data, prior to reviewing, manipulating or otherwise, accessing such data. If no agreement is reached (copy to be furnished to the contracting officer), the Contractor shall cease and desist any further actions resulting in accessing third party trade secret information and contact the Contracting Officer for further guidance. Under no circumstances shall any such data be commercially exploited and/or otherwise released to any party without the express approval of the Contracting Officer.~~

#### ~~E. GOVERNMENT REMEDY~~

~~The Contractor agrees that any breach or violation of the warranties, restrictions, disclosures or non-disclosures set forth in this conflict of interest clause shall constitute a material and substantial breach of terms, conditions, and provisions of this task order and that the Government may, in addition to any other remedy available, terminate the contract for default.~~

~~Further, the Contractor understands that this clause may serve as support to the Contracting Officer/office for finding the contractor ineligible for award. See FAR Part 9, "Responsibility" determination(s).~~

(a) "Organizational Conflict of Interest" means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. "Person" as used herein includes Corporations, Partnerships, Joint Ventures, and other business enterprises.

(b) The Contractor warrants that to the best of its knowledge and belief, and except as otherwise set forth in the contract, the Contractor does not have any organizational conflict of interest(s) as defined in paragraph (a).

(c) It is recognized that the effort to be performed by the Contractor under this contract may create a potential organizational conflict of interest on the instant contract or on a future acquisition. In order to avoid this potential conflict of interest, and at the same time to avoid prejudicing the best interest of the Government, the right of the Contractor to participate in future procurement of equipment or services that are the subject of any work under this contract shall be limited as described below in accordance with the requirements of FAR 9.5.

(d) The contractor agrees that it shall not release, disclose, or use in any way that would permit or result in disclosure to any party outside the Government:

(1) any information provided to the Contractor by the Government during or as a result of performance of this contract. Such information includes, but is not limited to, information submitted to the Government on a confidential basis by other persons. Further, the prohibition against release of Government provided information extends to cover such information whether or not in its original form, e.g., where the information has been included in Contractor generated work or where it is discernible from materials incorporating or based upon such information. This prohibition shall not expire after a given period of time.

(2) any information generated or derived during or as a result of performance of this contract. This prohibition shall expire after a period of three years after completion of performance of this contract.

(e) The prohibitions contained in subparagraphs (d)(1) and (d)(2) shall apply with equal force to any affiliate of the Contractor, any subcontractor, consultant, or employee of the Contractor, any joint venture involving the Contractor, any entity into or with which it may merge or affiliate, or any successor or assign of the Contractor. The terms of paragraph (g) of this Special Contract Requirement relating to notification shall apply to any release of information in contravention of this paragraph (d).

(f) The Contractor further agrees that, during the performance of this contract and for a period of three years after completion of performance of this contract, the Contractor, any affiliate of the Contractor, any subcontractor, consultant, or employee of the Contractor, any joint venture involving the Contractor, any entity into or with which it may subsequently merge or affiliate, or any other successor or assign of the Contractor, shall not furnish to the United States Government, either as a prime contractor or as a subcontractor, or as a consultant to a prime contractor or subcontractor, any system, component or services which is the subject of the work to be performed under this contract. This exclusion does not apply to any recompetition for those systems, components or services furnished pursuant to this contract. As provided in FAR 9.505-2, if the Government procures the system, component, or services on the basis of work statements growing out of the effort performed under this contract, from a source other than the contractor, subcontractor, affiliate, or assign of either, during the course of performance of this contract or before the three year period following completion of this contract has lapsed, the Contractor may, with the authorization of the cognizant Contracting Officer, participate in a subsequent procurement for the same system, component, or service. In other words, the Contractor may be authorized to compete for procurement(s) for systems, components or services subsequent to an intervening procurement.

(g) The Contractor agrees that, if after award, it discovers an actual or potential organizational conflict of interest, it shall make immediate and full disclosure in writing to the Contracting Officer. The notification shall include a description of the actual or potential organizational conflict of interest, a description of the action which the Contractor has taken or proposes to take to avoid, mitigate, or neutralize the conflict, and any other relevant information that would assist the Contracting Officer in making a determination on this matter. Notwithstanding this notification, the Government may terminate the contract for the convenience of the Government if determined to be in the best interest of the Government.

(h) Notwithstanding paragraph (g) above, if the Contractor was aware, or should have been aware, of an organizational conflict of interest prior to the award of this contract or becomes, or should become, aware of an organizational conflict of interest after award of this contract and does not make an immediate and full disclosure in writing to the Contracting Officer, the Government may terminate this contract for default.

(i) If the Contractor takes any action prohibited by this requirement or fails to take action required by this requirement, the Government may terminate this contract for default.

- (j) The Contracting Officer's decision as to the existence or nonexistence of an actual or potential organizational conflict of interest shall be final.
- (k) Nothing in this requirement is intended to prohibit or preclude the Contractor from marketing or selling to the United States Government its product lines in existence on the effective date of this contract; nor, shall this requirement preclude the Contractor from participating in any research and development or delivering any design development model or prototype of any such equipment. Additionally, sale of catalog or standard commercial items are exempt from this requirement.
- (l) The Contractor shall promptly notify the Contracting Officer, in writing, if it has been tasked to evaluate or advise the Government concerning its own products or activities or those of a competitor in order to ensure proper safeguards exist to guarantee objectivity and to protect the Government's interest.
- (m) The Contractor shall include this requirement in subcontracts of any tier which involve access to information or situations/conditions covered by the preceding paragraphs, substituting "subcontractor" for "contractor" where appropriate.
- (n) The rights and remedies described herein shall not be exclusive and are in addition to other rights and remedies provided by law or elsewhere included in this contract.
- (o) Compliance with this requirement is a material requirement of this contract.

\*\*\*\*\* CONTROLLED UNCLASSIFIED INFORMATION (CUI) \*\*\*\*\*

## Section I - Contract Clauses

The following clauses are incorporated by reference in this Task Order. All applicable clauses incorporated by reference in the basic MAC contract also apply.

### CLAUSES INCORPORATED BY REFERENCE

52.203-16 Preventing Personal Conflicts of Interest JUN 2020  
52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements -- Representation JAN 2017  
52.204-2 Security Requirements MAR 2021  
52.204-16 Commercial and Government Entity Code Reporting AUG 2020  
52.204-17 Ownership or Control of Offeror AUG 2020  
52.204-18 Commercial and Government Entity Code Maintenance AUG 2020  
52.204-20 Predecessor of Offeror AUG 2020  
52.204-22 Alternative Line Item Proposal JAN 2017  
52.204-23 Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab and Other Covered Entities JUL 2018  
52.204-24 Representation Regarding Certain Telecommunications and Video Surveillance Services or Equipment NOV 2021  
52.204-25 Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment NOV 2021  
52.204-26 Covered Telecommunications Equipment or Services - Representation  
52.219-6 Notice of Total Small Business Set-Aside NOV 2020  
52.219-8 Utilization of Small Business Concerns OCT 2018  
52.219-14 Limitations on Subcontracting  
52.222-41 Service Contract Labor Standards AUG 2018  
52.222-46 Evaluation of Compensation for Professional Employees FEB 1993  
52.223-5 Pollution Prevention & Right-To-Know Information MAY 2011  
52.228-5 Insurance--Work on a Government Installation JAN 1997  
52.232-22 Limitation of Funds  
52.232-39 Unenforceability of Unauthorized Obligations JUN 2013  
52.232-40 Providing Accelerated Payments to Small Business Subcontractors NOV 2021  
52.237-2 Protection of Government Buildings, Equipment, and Vegetation APR 1984  
52.243-1 Changes - Fixed Price AUG 1987  
52.245-9 Use and Charges APR 2012  
52.249-4 Termination for Convenience of the Government (Services) APR 1984  
252.204-7008 Compliance with Safeguarding Covered Defense Information Controls  
252.204-7016 Covered Defense Telecommunications Equipment or Services - Representation  
252.204-7018 Prohibition on Acquisition of Covered Defense Telecommunications Equipment or Services JAN 2021  
252.204-7019 Notice of NIST SP 800-171 DoD Assessment Requirements NOV 2020  
252.204-7020 NIST SP 800-171 DoD Assessment Requirements MAR 2022  
252.204-7023 Reporting Requirements for Contracted Services JUL 2021  
252.223-7006 Prohibition on Storage, Treatment, and Disposal of Toxic or Hazardous Materials--Basic SEP 2014  
252.227-7016 Rights in Bid or Proposal Information JAN 2011  
252.227-7026 Deferred Delivery of Technical Data or Computer Software  
252.239-7016 Telecommunications Security Equipment, Devices, Techniques and Services DEC 1991  
252.245-7003 Contractor Property Management System Administration APR 2012  
DFARS PGI 204.7108 Payment Instructions.

DFARS PGI 204.7108(b)(2)Table PGI 204.7108 Payment instructions. | Acquisition.GOV

\* Note: No Government furnished property is anticipated to be furnished to the contractor under this contract (see FAR 45.000 (b)(5)).

### CLAUSES INCORPORATED BY FULL TEXT

52.217-8 Option to Extend Services (NOV 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option



provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 1 day of Option 4 Year end date.

#### 52.217-9 Option to Extend the Term of the Contract (MAR 2008)

(a) The Government may extend the term of this contract to 66 months by written notice to the Contractor prior to completion of the base period; provided that the Government gives the Contractor a preliminary written notice of its intent to extend before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 66 months.

#### 52.219-1 Alternate I (Feb 2024) Small Business Program Representations

As prescribed in 19.309 (a)(2) add the following paragraph (c)(10) to the basic provision:

(10) [Complete if offeror represented itself as disadvantaged in paragraph (c)(2) of this provision.] The offeror shall check the category in which its ownership falls:

? Black American.

? Hispanic American.

? Native American (American Indians, Eskimos, Aleuts, or Native Hawaiians).

? Asian-Pacific American (persons with origins from Burma, Thailand, Malaysia, Indonesia, Singapore, Brunei, Japan, China, Taiwan, Laos, Cambodia (Kampuchea), Vietnam, Korea, The Philippines, Republic of Palau, Republic of the Marshall Islands, Federated States of Micronesia, the Commonwealth of the Northern Mariana Islands, Guam, Samoa, Macao, Hong Kong, Fiji, Tonga, Kiribati, Tuvalu, or Nauru).

? Subcontinent Asian (Asian-Indian) American (persons with origins from India, Pakistan, Bangladesh, Sri Lanka, Bhutan, the Maldives Islands, or Nepal).

? Individual/concern, other than one of the preceding.

#### 252.227-7017 Identification and Assertion of Use, Release or Disclosure Restrictions JAN 2023

As prescribed in 227.7104 (e)(2), or 227.7203-3 (a), use the following provision:

##### IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (JAN 2023)

(a) The terms used in this provision are defined in following clause or clauses contained in this solicitation--

(1) If a successful offeror will be required to deliver technical data, the Rights in Technical Data--Other Than Commercial Products and Commercial Services clause, or, if this

solicitation contemplates a contract under the Small Business Innovation Research Program, the Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research (SBIR) Program clause.

(2) If a successful offeror will not be required to deliver technical data, the Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation clause, or, if this solicitation contemplates a contract under the Small Business Innovation Research Program, the Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research (SBIR) Program clause.

(b) The identification and assertion requirements in this provision apply only to technical data, including computer software documentation, or computer software to be delivered with other than unlimited rights. For contracts to be awarded under the Small Business Innovation Research Program, the notification and identification requirements do not apply to technical data or computer software that will be generated under the resulting contract. Notification and identification is not required for restrictions based solely on copyright.

(c) Offers submitted in response to this solicitation shall identify, to the extent known at the time an offer is submitted to the Government, the technical data or computer software that the Offeror, its subcontractors or suppliers, or potential subcontractors or suppliers, assert should be furnished to the Government with restrictions on use, release, or disclosure.

(d) The Offeror's assertions, including the assertions of its subcontractors or suppliers or potential subcontractors or suppliers, shall be submitted as an attachment to its offer in the following format, dated and signed by an official authorized to contractually obligate the Offeror:

##### Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software.

The Offeror asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted:

Technical Data or Computer Software to be Furnished with Restrictions\* (LIST)

Basis for Assertion\*\* (LIST)

Asserted Rights Category\*\*\* (LIST)

Name of Person Asserting Restrictions\*\*\*\* (LIST)

\*For technical data (other than computer software documentation) pertaining to items, components, or processes developed at private expense, identify both the deliverable technical data and each such item, component, or process. For computer software or computer software documentation identify the software or documentation.

\*\*Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions. For technical data, other than computer software documentation, development refers to development of the item, component, or process to which the data pertain. The Government's rights in computer software documentation generally may not be restricted. For computer software, development refers to the software. Indicate whether development was accomplished exclusively or partially at private expense. If development was not accomplished at private expense, or for computer software documentation, enter the specific basis for asserting restrictions.

\*\*\*Enter asserted rights category (e.g., government purpose license rights from a prior contract, rights in SBIR data generated under another contract, limited, restricted, or government purpose rights under this or a prior contract, or specially negotiated licenses).

\*\*\*\*Corporation, individual, or other person, as appropriate.

\*\*\*\*\*Enter "none" when all data or software will be submitted without restrictions.

Date \_\_\_\_\_  
Printed Name and Title \_\_\_\_\_  
Signature \_\_\_\_\_

(End of identification and assertion)

(e) An offeror's failure to submit, complete, or sign the notification and identification required by paragraph (d) of this provision with its offer may render the offer ineligible for award.

(f) If the Offeror is awarded a contract, the assertions identified in paragraph (d) of this provision shall be listed in an attachment to that contract. Upon request by the Contracting Officer, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate any listed assertion.

(End of provision)

#### 52.232-18 Availability of Funds (APR 1984)

Funds are not presently available for this contract. The Government's obligation under this contract is contingent upon the availability of appropriated funds from which payment for contract purposes can be made. No legal liability on the part of the Government for any payment may arise until funds are made available by the Contracting Officer for this contract and until the contractor receives notice of such availability, to be confirmed in writing by the Contracting Officer.

#### 252.232-7006 Wide Area Work Flow Payment Instructions (JAN 2023)

(a) Definitions. As used in this clause--

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003 , Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall--

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items--

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the

requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

- (iii) For customary progress payments based on costs incurred, submit a progress payment request.
- (iv) For performance based payments, submit a performance based payment request.
- (v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.  
[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table\*

Field Name in WAWF Data to be entered in WAWF

|                         |        |
|-------------------------|--------|
| Pay Official DoDAAC     | N68732 |
| Issue By DoDAAC         | N00244 |
| Admin DoDAAC            | N00244 |
| Inspect By DoDAAC       | N63018 |
| Ship To Code            | N63018 |
| Ship From Code          | N/A    |
| Mark For Code           | N63018 |
| Service Approver DoDAAC | N63018 |
| Service Acceptor DoDAAC | N63018 |
| Accept at Other DoDAAC  | N/A    |
| LPO DoDAAC              | N63018 |
| DCAA Auditor DoDAAC     | N/A    |
| Other DoDAAC(s)         | N/A    |

(4) Payment request and supporting documentation. The Contractor shall ensure a payment request includes appropriate contract line item and subline item descriptions of the work performed or supplies delivered, unit price/cost per unit, fee (if applicable), and all relevant back-up documentation, as defined in DFARS Appendix F, (e.g. timesheets) in support of each payment request.

(5) WAWF email notifications. The Contractor shall enter the e-mail address identified below in the "Send Additional Email Notifications" field of WAWF once a document is submitted in the system.

Chevance.bailey1@navy.mil

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TBD

(2) For technical WAWF help, contact the WAWF helpdesk at 866-618-5988.

(End of clause)

NAVY USE OF ABILITYONE SUPPORT CONTRACTOR - RELEASE OF OFFEROR INFORMATION

NAVSUP San Diego may utilize contractor support through the AbilityOne Program, as needed, to perform contract closeout functions for this acquisition. Information, including business sensitive/confidential or proprietary data, that the offeror provides to the government or information already in the possession of the government may be viewed and utilized by the AbilityOne Program support contractor personnel during the course of its contract performance. The information that may be made available to the support contractor may include, for example, pricing and technical proposals, historical contract, pricing and performance information, Commercial Asset Visibility (CAV) reporting information and similar data /information.

By submission of a proposal in response to this solicitation, the offeror and its subcontractors consent to a release of their business sensitive /confidential or proprietary data to the government's AbilityOne Program support contractor personnel. AbilityOne will have a Non-Disclosure/Non-Use Agreement in place with the Government in order to comply with DFARS 252-227-7025. The offeror retains the right to engage AbilityOne in a non-disclosure agreement pursuant to DFARS 252.227-7025(b)(5)(iv).

AUTHORIZED CHANGES ONLY BY THE CONTRACTING OFFICER

(a) Except as specified in paragraph (b) below, no order, statement, or conduct of government personnel who visit the contractor's facilities or in any other manner communicate with contractor personnel during the performance of this contract shall constitute a change under the "Changes" clause of this contract.

(b) The contractor shall not comply with any order, direction or request of government personnel unless it is issued in writing and signed by the Contracting Officer, or is pursuant to specific authority otherwise included as a part of this contract.

(c) The Contracting Officer is the only person authorized to approve changes in any of the requirements of this contract and notwithstanding provisions contained elsewhere in this contract, the said authority remains solely with the Contracting Officer. In the event the contractor effects any change at the direction of any person other than the Contracting Officer, the change will be considered to have been made without authority and no adjustment will be made in the contract price to cover any increase in charges incurred as a result thereof. The address and telephone number of the Contracting Officer is:

Michael Luu  
619 556-5905  
3985 Cummings Road  
San Diego, CA 92136

## Section J - List of Attachments

| <u>Attachment #</u> | <u>File Name</u>                                   | <u>Description</u>  |
|---------------------|----------------------------------------------------|---------------------|
| 1                   | EWTGPAC NSFS Support dd0254 V(1).pdf               | DD254               |
| 2                   | EWTGPAC NSFS Support QASP V(1).docx                | QASP                |
| 3                   | EWTGPAC NSFS Support Technical Exhibit 1 (V1).docx | Technical Exhibit 1 |
| 4                   | EWTGPAC NSFS Support Technical Exhibit 2 (V1).docx | Technical Exhibit 2 |
| 5                   | EWTGPAC NSFS Support Technical Exhibit 3 (V1).docx | Technical Exhibit 3 |
| 6                   | Cost Summary Format                                | Cost Summary        |
| 7                   | Offeror's Past Performance Data (OPPD)             | OPPD                |
| 8                   | Offeror Q and A                                    | Q and A             |

## Section K - Representations, Certification, & Other Statements

The requirement for Annual Representation and Certifications at 52.204-8 applies at the basic multiple award contract (MAC) level for each offeror. Offerors are not required to submit representation or certifications in response to this solicitation or its subsequent Task Order award, if any. All requests for representation or certification shall come from the MAC Contracting Officer in accordance with the terms of the basic contract.

252.203-7005 Representation Relating To Compensation Of Former DoD Officials (NOV2011)

252.204-7016 Covered Defense Telecommunications Equipment or Services -- Representation (DEC 2019)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-- Representation (MAY 2021)

52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

52.219-1 - Small Business Program Representations--Alternate I (SEP 2015)

52.219-6 Notice of Total Small Business Set-Aside (NOV 2020)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-- Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications- Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L.115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L.115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or services, regardless of whether that use is in performance of work under a federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [ ☐ ] will, [ ☐ ] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [ \_\_\_\_ ] does, [ \_\_\_\_ ] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION (OCT 2020)

(a) Definitions. As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) Representations.

(1) The Offeror represents that it [ \_\_\_\_ ] does, [ \_\_\_\_ ] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it [ \_\_\_\_ ] does, [ \_\_\_\_ ] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

## Section L - Instructions, Conditions, & Notices to Offerors or Quoters

### INSTRUCTIONS TO OFFEROR(S)

#### 1. Definitions. As used 1. in this provision:

- In writing or written means any worded or numbered expression which can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.
- Proposal modification is a change made to a proposal before the solicitation's closing date-and time, or made in response to an amendment, or made to correct a mistake at any time before award.
- Proposal revision is a change to a proposal made after the solicitation closing date, at the request of or as allowed by a Contracting Officer.
- Time, if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and Federal legal holidays. However, if the last day falls on a Saturday, Sunday, or Federal legal holiday, then the period shall include the next working day.

2.0. The North American Industry Classification (NAICS) code applicable to the requirements contained within this solicitation is 541330. Therefore, companies proposing as a subcontractor under this solicitation as a small business concern must have had an average annual receipt over their five previous fiscal years that was less than \$47,500,000. The size standard certified to by the Prime for their basic SeaPort NxG contract is valid for the base ordering period and duration of any resultant Task Order issued against this solicitation.

#### 3.0. Task order award.

3.1. The Government intends to award a Task Order that results from this solicitation to the responsible Offeror(s) whose proposal represents the Best Value to the Government in accordance with the evaluation criteria of Factors and Subfactors set forth in Section M of this solicitation.

3.2. The Government may reject any or all proposals if such action is in the Government's interest.

3.3. The Government reserves the right to waive informalities and minor irregularities in proposals received.

3.4. The Government intends to evaluate proposals in accordance with Section M of this solicitation. The government intends to award a Task Order upon initial proposals. Therefore, the Offeror's initial proposal should contain the Offeror's best terms from a cost/price and technical standpoint. However, the Government may contact any or all or a limited number of offerors with questions concerning their responses as permitted under FAR Part 16. The Government reserves the right to conduct discussions if the Contracting Officer later determines them to be necessary.

3.5. The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the Offeror specifies otherwise in the proposal.

3.6. The Government reserves the right to make multiple awards if, after considering the additional administrative costs, quality of proposals, and availability of funding, it is in the Government's best interest to do so.

3.7. Exchanges with Offerors after receipt of a proposal do not constitute a rejection or counteroffer by the Government.

3.8. The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more contract line items is significantly overstated or understated as indicated by the application of cost and price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

3.9. Task Orders under SeaPort NxG shall be procured in accordance with the MAC contract provision C.8. Task Order Process.

3.10. Amendments to the solicitation. If this solicitation is amended all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this solicitation by the date and time specified in the amendment(s).

#### 4.0 Submission, modification, revision, and withdrawal of proposals.

4.1. Proposals and revisions of proposals shall be uploaded electronically in the Procurement Integration Enterprise Environment "PIEE" solicitation module under the appropriate solicitation number and its latest amendment (if any). In the event that the PIEE solicitation module is not operational, experiences technical difficulties, or an Offeror is temporarily unable to access or use the solicitation module, the Offeror shall immediately notify the PCO.

#### 4.2. The cover letter of the proposal must show the following:

- 4.2.1. The solicitation number.
- 4.2.2. The name, address, e-mail address, and telephone and facsimile numbers of the Offeror.
- 4.2.3. A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item.
- 4.2.4. Names, titles, and telephone and facsimile numbers (and electronic addresses if available) of persons authorized to negotiate on the Offeror's behalf with the Government in connection with this solicitation; and



4.2.5. Name, title, and signature of person authorized to sign the proposal.

4.2.6. Submission, modification, revision, and withdrawal of proposals.

4.3. Offerors are responsible for submitting proposals and any revisions in the solicitation module by the time specified in the solicitation.

4.4. Any proposal modification or revision not received/submitted in the solicitation module by the exact time specified for receipt of offers is "late" and will not be considered. The solicitation will close at the exact date and time specified in the solicitation and offerors will be unable to submit/upload their proposal after that time. Each proposal submitted in the solicitation module is time/date stamp recorded by the solicitation module at time of proposal upload.

4.5. Proposals may be withdrawn by written notice to the Contracting Officer provided such notice is received prior to Task Order award.

4.6. The Offeror must propose to provide all items in order to be deemed responsive to this solicitation.

4.7. Offerors shall submit proposals in response to this solicitation in English and in U.S. dollars.

4.8. Offerors may submit modifications to their proposals at any time before the solicitation closing date and time. In the event of an amendment to the solicitation that requires offerors to submit proposal revisions, the amendment will provide instructions for submittal in the solicitation module.

4.9. Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

4.10. Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

4.11. Offer expiration date. Proposals in response to this solicitation shall be valid for 180 calendar days.

4.12. Restriction on disclosure and use of data. Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall:

4.13. Mark the title page with the following legend:

"This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed in whole or in part for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this Offeror as a result of, or in connection with, the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets] and

4.14. Mark each sheet of data it wishes to restrict with the following legend:

"Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal."

## ADDITIONAL INSTRUCTIONS AND CONDITIONS AND NOTICES TO OFFERORS

### 1.0 GENERAL

1.1. The purpose of this procurement is to obtain Technical Training and Instructional Services Support for the N75 TACAIR Division and Academics Department (N9) of Expeditionary Warfare Training Group Pacific (EWTGP).

1.2. The Government will evaluate each Offeror's understanding of the Government's requirements and ability to perform the work on the basis of its proposal. It is the Offeror's responsibility to provide information and evidence that clearly demonstrates its ability to respond satisfactorily to the solicitation requirements. The Government intends to award one task order as detailed in Section M.

1.3. Offerors may submit questions requesting clarification of solicitation requirements via email to Jennifer Stevens at jennifer.k.stevens7.civ@us.navy.mil. Unless otherwise allowed, all questions shall be submitted by 4:30 PM PST within 5 business days from date of solicitation release, as time may not permit responses to questions received after that time.

1.4. The government reserves the right to reject any proposal that does not comply with this proposal preparation/submission instruction.

1.5. Due to the nature and scope of the work encompassed by this solicitation, the Government requires that there be no conflict which would preclude the prime contractor from performing any portion of the Performance Work Statement (PWS), regardless of whether it intends to subcontract that portion.

1.6. Due to the nature of the work outlined in Section C, the Government anticipates that organizational conflicts of interest (OCIs) will arise for offerors that perform under other contracts within the cognizance of EWTGP as prime contractor or subcontractor for hardware, software, system design, integration, or production of the systems that will be covered by this solicitation. The Government is most concerned about potential OCIs in the following scenarios: (1) when performance of all the work under this solicitation would place an offeror in a position to make technical, design, or programmatic recommendations that would include hardware, software, system design, integration, or production of systems provided by the offeror's organization; or (2) when the provision of the engineering and technical direction described in Section C and L would create the situation prohibited by FAR 9.505-1 because the offeror is currently a prime contractor, subcontractor, or consultant on a contract for the supply of a system covered by this solicitation or any of its major components.

Therefore, if any offeror may have an OCI, or if any offeror has taken any steps to eliminate an OCI and the offeror believes that the conflict no longer exists, the offeror must notify the Government and must submit an OCI mitigation plan with its proposal. Failure by an offeror that has

identified a potential OCI or an eliminated OCI to submit an OCI mitigation plan with its proposal shall be considered grounds for disqualification from award. The Government will not accept mitigation measures for impaired objectivity OCIs. For any OCI, the Government will not accept mitigation or elimination measures: (1) that create an additional burden on the government to implement; (2) that involve directed subcontractors or creating separate lines of reporting or any modification to the Government/prime contractor relationship; or (3) that are deemed in the sole discretion of the contracting officer to provide insufficient organizational independence between the prime contractor or a subcontractor under this contract and a prime contractor or subcontractor for hardware, software, system design, integration, or production of the systems that will be covered by this solicitation.

This is not an exhaustive list of measures that will be considered inadequate to protect the Government. It is an illustrative list provided in an effort to ensure that all offerors understand the Government's expectations and intent to avoid OCIs. The Government reserves the right to determine whether or not any mitigation plan provided by an offeror is sufficient to protect the Government. The Government also does not intend to accept any mitigation measures that involve additional oversight or commitment of resources by the Government, such as agency review of contractor deliverables, internal review of task assignments for OCI before issuance, or formalized monthly reviews of work performed and projected. All offerors are directed to review and comply fully with the OCI clauses included in Sections L and H of this solicitation.

## 2.0 INSTRUCTIONS FOR SUBMISSION OF OFFERS

2.1. General: Award will be made under Solicitation No. N0024426RS007 based on a one-step source selection process. Proposals must be submitted via PEE by the solicitation closing date and time specified in this solicitation. Offerors must comply with the detailed instructions for the format and content of the proposal; proposals that do not comply with the detailed instructions for the format and content of the proposal may be considered non-responsive and may render the Offeror ineligible for award.

2.2. Electronic Submission: Offers must be received via electronic submission into the PEE solicitation module by the closing date/time in order to be considered. Failure to submit a complete proposal prior to the closing date and time will render the proposal late and unacceptable.

2.3. Proposal Format: In order to maximize efficiency and minimize the time for proposal evaluation, it is required that all Offerors shall submit their proposals in accordance with the format and content specified.

2.3.1. The electronic proposal shall be prepared so that if printed, the proposal meets the following format requirements:

8.5 x 11 inch paper  
Single-spaced typed lines  
No graphics or pictures (brochuremanship) other than graphs/tables/charts as may be required or necessary  
(Tables/Graphs/Charts are allowed for the staffing plan)  
1 inch margins  
12-point Times New Roman Font text  
No hyperlinks  
Microsoft Office (Word, Excel, Power Point) or Adobe  
All filenames shall include the Offeror's company name and title/subject of file content; all files shall be named with the file extension .doc, .xls, .ppt, or .pdf  
All supporting Cost Data shall be provided in Microsoft Excel software, with all files named with the file extension xls.

2.3.2. Instructions regarding use of certain electronic products (i.e., Microsoft Office, Excel, Adobe) listed herein shall not be construed as Government endorsement of specified products.

2.3.3. Cost/Price Summary shall be submitted using Microsoft Office 2013 (or higher) Excel in the Cost Summary Format provided as Attachment 6 to this solicitation. This is in addition to the Offeror loading their Section B pricing into the solicitation module via the web form. Narratives related to cost/price summary data may be provided in MS Word.

2.3.4. Any other attached documents requested herein shall be compatible with Microsoft Office 2013 format. Compression tools are limited to PKZip or WinZip. The font size for text contained in embedded graphics (tables and illustrations) shall be no smaller than 8 point Times New Roman font.

2.3.5. Offerors shall have all subcontractors submit proposal information in a uniform format consistent with the above instructions.

2.3.6. Page Numbering: The Offeror shall use a standard page numbering system to facilitate proposal references. Number consecutive pages within sections. Charts, graphs and other insert materials shall be page-numbered as part of the page numbering system.

2.3.7. Page Limitations: Page limitations are identified for each volume/section of the proposal, as described in paragraph 3.1 below and will be treated as maximums. If exceeded, excess pages will not be read or considered in proposal evaluation. When both sides of a sheet display printed material, it shall be counted as two pages. Graphs, charts, and tables are included in the page count. The following are not included in the page limitations: Title/Cover pages

Tables of contents  
Glossaries of abbreviations and acronyms  
Teaming agreements, letters of intent for key personnel or subcontractors/consultants, and subcontract agreements Proposal Cross-Reference Tables

2.3.8. Cover Page, Table of Contents, Proposal Cross-Reference Table: Volume I, II and III must include a cover page. The Cover Page shall identify the solicitation number, amendment number, proposal volume and title, and the Offeror's name. Volume I shall include a Master Table of Contents and a Proposal Cross-Reference Table. The Proposal Cross-Reference Table shall indicate the required proposal content and the section/page number where this content appears in the proposal. Cover Pages, Tables of Contents, and the Proposal Cross-Reference Table will not count against page limitations.

2.3.9. Glossary of Abbreviations and Acronyms: Volume I, II and II shall contain a glossary which includes all abbreviations, acronyms and their corresponding definitions. Glossaries will not count against page limitations.

2.3.10. Cost and Pricing Information: No cost or pricing information of any kind shall be included in any volume except Volume III, Cost/Price Proposal. Offerors must submit all cost/price-related documentation required for Volume III. Cost/price summary and back-up spreadsheets must be

submitted in MS Excel format. Note: should there be any discrepancy between the pricing submitted in Section B and the cost/price-related backup /summary documentation, the Offeror's Section B pricing will take precedence.

### 3.0 PROPOSAL ORGANIZATION

The proposal shall be limited to the following submissions and number of pages:

#### 3.1. Volume I - Technical Approach

NOTE: Offerors are to ensure that all Technical Approach, and Experience information is contained within Volume I and that no cost/price information has been included in this volume

--Technical Approach : 10 -Page Limit

--Key Personnel: 5-Page Limit resume

--Quality Control Plan: 2-Page Limit

#### 3.2. Volume II - Past Performance

Previous Contracting Effort Narrative (Attachment 7): Maximum of 3 references (2-Page Limit each) total, one of the references may be for any subcontractor that performs more than 10% of total contract effort, page count does not apply for OPPD or CPARS

#### 3.3. Volume III - Supporting Cost Data

-- Section B Pricing - provided via the PIEE solicitation module

-- Cost/Price Narrative: 20-Page Limit

-- Cost/Price Supporting Data: No Page Limit (Cost Summary Format - Attachment)

-- All Subcontractor cost/price supporting data must be submitted in the PIEE solicitation module in MS Excel format provided as Attachment: No Page Limit

### 4.0 PROPOSAL CONTENT

The completion and submission to the Government of an offer shall indicate the Offeror's unconditional agreement to the terms and conditions in this solicitation. The offer consists of and must include the following:

#### 4.1. VOLUME I - TECHNICAL APPROACH

##### 4.1.1. SECTION 1 (Subfactor A)

###### Technical Approach

The offeror shall demonstrate specific knowledge, capability and relevant experience (Prime and Subcontractor) to perform the tasks prescribed in the Performance Work Statement. The capabilities and experience proposed shall demonstrate the offeror's ability to provide Technical Training Instructional Services to Learning Standards Department (N9) and N35 TACAIR Division of EWTGP. The narrative must address PWS paragraphs 5.1 through 5.3.6.

##### 4.1.2. SECTION 2 (Subfactor B)

###### Key Personnel Resume

Quality of the contract personnel proposed will be determined by the Navy's evaluation of resumes submitted in terms of the merit of the individual's qualifications. This information will be compared to solicitation requirements. Each individual resume should not exceed 5 pages in length. Resumes shall be grouped by labor category. The resume shall provide the following information:

- (a) Name
- (b) Present place of employment (if contingent hire, so note)
- (c) Security clearance
- (d) Proposed labor category
- (e) Experience and educational background
- (f) Unique skills, specific experience, and accomplishments that are directly applicable to the PWS
- (g) Proposed application of the individual to the contract effort (i.e. full time or part time)

Educational information must include at a minimum: highest degree attained, major (if any), college (if any), date degree awarded, applicable military schools or courses, and program related experience. Qualifications and experience of each individual should be appropriate to the proposed labor category. Years of program related experience must be clearly shown in the resume. Qualifications for required contract personnel categories are provided below and must be specifically addressed in the individual's resume. Key personnel are deemed essential to the performance of this effort possessing the following required qualifications per PWS.

##### 4.1.3 SECTION 3 (Subfactor C)

###### Quality Control Plan

The Quality Control Plan (QCP) shall, at a minimum, address the following: self-monitoring methods; performance measurements metrics; document compliance with the Performance Requirements Summary (PRS) and PWS; methodology to be used for discrepancy resolution of any discrepancies, to include the ability to incorporate and address unplanned events and circumstances.

#### 4.2. VOLUME II - PAST PERFORMANCE

4.2.1. Past Performance is a measure of the degree to which the Offeror has satisfied its customers in the past and complied with Federal, State and local laws and regulations. The Government may contact all or some of each Offeror's customers to obtain information.. The PCO Representative may use other information from other Government databases to evaluate an Offeror's past performance. The Government may also consider past performance information obtained from sources other than those identified by the Offeror, including but not limited to Federal, State, and local Government agencies, Better Business Bureaus, published media and electronic databases. The Government reserves the right to limit or expand the number of references it decides to contact. References other than those identified by the Offeror may be contacted by the Government and the reference information received will be used in the evaluation of the Offeror's past performance. In the event that no responses from the Offeror's

customers are received and the Government is unable to gather any other information, the Offeror may not be evaluated favorably or unfavorably on past performance.

4.2.2. The past performance information shall consist of no more than 9 pages total (not counting the page total for Corporate Experience (3 pages maximum). Offerors are cautioned that no more than the first 9 pages of the past performance information will be evaluated. These submissions shall be used by the Government to evaluate recency, relevancy, quality of services, and overall confidence assessment.

4.2.3. The Offeror shall list three relevant contracts and/or subcontracts (not limited to Government contracts) within the last five years of the RFP closing date that demonstrate the ability to handle requirements of the same scope, magnitude and complexity to that which is detailed in the PWS. Relevancy shall be based on the similarity of service/support; type of tasks performed, complexity; dollar value; contract type; geographic dispersion; and degree of subcontracting/teaming. Include Seaport-e/NxG Task Orders in the information provided if applicable. Include a discussion of how the references provided are relevant to the work being proposed.

4.2.4. The offeror shall describe the company's history and experience, emphasizing corporate experience in similar tasks to those specified in Section C of the solicitation which the Offeror has performed during the past five years on contracts valued over \$1 million. The Offeror shall include the relevant experience of any subcontractor(s) in this section of the proposal. Relevant experience should be related clearly to the provision of Technical Training and Instructional Services or other subject matter expertise services support.

4.2.5. If the Offeror, as an entity, has not performed any contracts or subcontracts within the past five years, then it shall submit the information as it applies to any predecessor companies, key personnel with relevant experience and/or relevant experience of all subcontractors proposed for this effort performed during the past five years. In this event, the Offeror's past performance rating will be determined from rating these entities.

4.2.6. In the case of an Offeror without any record of relevant past performance or for whom information on past performance is not available, the Offeror may not be evaluated favorably or unfavorably on past performance.

For each contract (or Task Order), the Offeror shall identify:

- (i) Name of contracting activity
- (ii) Contract number.
- (iii) Contract type.
- (iv) The dollar amount of the contract (including options).
- (v) Contract labor hours (including options).
- (vi) The actual dollar amount funded.
- (vii) The actual labor hours (prime plus subcontractor) provided.
- (viii) The dates of award and of completion or termination.
- (ix) If terminated, the reason for termination (for Cause or for Convenience of the Government).
- (x) The name of the requiring agency.
- (xi) The name, location, electronic mail address and phone number of the Contracting Officer, Administrative Contracting Officer, Contracting Officer's Representative (COR) and Program Manager.
- (xii) Involvement as prime or subcontractor.

(xiii) The purpose of the contract and brief description.

(xiv) Information on problems encountered on each identified contract and the Offeror's corrective action.

Additionally, within the 9-page maximum:

4.2.7. The Offeror shall identify any Government contract that has been terminated for Cause or Default within the past five years. For each terminated contract, identify (i) the contract number, (ii) the requiring agency, (iii) name and phone number of the contracting officer, and (iv) purpose of the contract.

4.2.8. The Offeror shall discuss the reasons for any cost overruns.

4.2.9. The Offeror shall discuss any claims or request for equitable adjustment and how they were resolved.

### 4.3. VOLUME III - SUPPORTING COST DATA

#### 4.3.1 SECTION 1

4.3.1.1. Offerors shall submit proposed pricing for Section B via the PIEE solicitation module. Proposed costs must be provided for each applicable Contract Line Item Number (CLIN) identified in this solicitation. The Offeror shall comply with instructions contained herein for submittal of the Cost/Price Proposal. Task Order award will be made at the proposed costs of the successful Offeror using that Offeror's proposed Section B pricing.

4.3.1.2. For evaluation purposes only, offeror shall submit pricing costs based on proposed estimated labor hours for each labor category (also see Attachment 5):

4.3.1.3. Offeror's proposal should represent its best efforts to respond to the solicitation. Any inconsistency between promised performance, the technical capability and experience in the proposal, identified personnel resources, and cost/price must be explained in the proposal. For example, if the intended use of new and innovative techniques is the basis for an abnormally low estimate, the nature of these techniques and their impact on cost or price shall be explained; or, if a corporate policy decision has been made to absorb a portion of the estimated cost/price, that must be stated in the proposal. Any inconsistency, if unexplained, may raise a fundamental question of the Offeror's understanding of the nature and scope of the work required and may adversely impact the evaluation of the Offeror's proposal. The burden of proof as to cost/price credibility rests with the Offeror. Unrealistically low prices may indicate an inability to understand requirements and a high-risk approach to contract performance. Accordingly, the Government may consider the findings of such an analysis in evaluating an Offeror's ability to perform and the risk of its approach.

#### 4.3.2. SECTION 2

##### 4.3.2.1. Cost/Price Data (Prime Offerors)

4.3.2.1.1 Offerors shall provide Supporting Cost/Price Data using the format provided as Attachment 6 with this solicitation. The cost/price data shall include all major cost elements (Direct Labor by category/rate/hours, Fringe rate and amounts, Overhead rate and amounts, G&A rate and amounts, Cost of Money factor/rate and amount, escalation, Subcontracts, etc.) and fees. Offers shall include the proposed level(s) of effort (man-hours) for each CLIN. Supporting Cost/Price spreadsheets shall detail the breakdown of all costs by task and year, with complete formulas.

4.3.2.1.2. Offerors shall submit complete Section B pricing and submit via the PIEE solicitation module. In addition, the offerors shall submit a cost summary table in the format in following table:

## Reference Attachment Cost Summary Table

4.3.2.1.3. Offerors shall provide Cost/Price spreadsheets using the format provided in the Attachments that details the breakdown of costs by year, with complete formulas, of proposed costs/prices by contract year. Offerors shall provide a screen-capture (or equivalent) from the employer's payroll system for each name in the Offeror's Staffing Plan. If there is no payroll data available for one or more of the individuals proposed, offerors shall provide payroll data for a comparable position, and a brief analysis of how the proposed position is comparable to the position corresponding to the payroll data supplied. Any additional supporting documentation may be provided at the offeror's discretion. Each screen-capture should match the historical rates listed for that individual on the Supporting Cost/Price spreadsheet (Attachments). The proposed rates provided in this attachment must be the exact rates utilized in the pricing section B, proposed in the cost analysis narrative and provided in the Cost Summary Format (Attachments)

4.3.2.1.4. If any individual's proposed rate is different from the actual incurred rate provided on Attachment 6 or in the screen capture, the Offeror is to explain the reason for the difference in the narrative.

4.3.2.1.5. Offerors shall provide the Basis of Estimate (BOE) supporting the costs/prices provided in the Cost/Price Summary including a description of the assumptions and computations used to develop the proposed costs/prices. These estimates must be included in Section B of the offer for the ODC CLINs. Other/additional ODC amounts proposed by an Offeror shall be included in said CLINs and explained in the narrative rationale provided by the Offeror.

4.3.2.1.6. Offerors shall address Subcontracted Costs. Each subcontractor estimate shall be addressed separately, and detailed cost information shall be provided in the same format (Attachments 6 and payroll screen shots) as required for the prime contractor. The detailed information may be submitted separately to the Government if the subcontractor does not wish to provide this data to be provided to the prime Offeror. Subcontractors may submit their information directly to the Government via the PEE solicitation module. For cost/price summary data provided separately, Subcontractors shall place the appropriate restrictive legend on their data and identify the Company name, address, point of contact and solicitation number.

4.3.2.1.7. SUBCONTRACTORS ARE REQUIRED TO PROVIDE CONTACT INFORMATION FOR THEIR COGNIZANT DCAA BRANCH OFFICE WITH THE NAME AND PHONE NUMBER OF A DCAA POINT OF CONTACT WHO IS FAMILIAR WITH THEIR COMPANY.

## Section M - Evaluation Factors for Award

### SECTION M

A task order will be awarded to the responsible offeror whose proposal presents the Best Value to the Government. Subjective tradeoff method will be used to evaluate the factors and subfactors described herein.

#### 1.0 BASIS FOR AWARD

1.1. It is the intention of the Government to award a Firm Fixed Price Task Order, with one base year and four option years, plus a fifth-year option to extend services by six months for Technical Training and Instructional Services for EWTGP, San Diego, CA to the proposal that offers the best value as result of evaluation described herein.

#### 1.2. Definitions of terms:

| <b>Table 1</b>       | <b>Definitions</b>                                                                                                                                                                                                                                                                                                                                                                                                               |
|----------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Best Value           | Means the expected outcome of an acquisition that, in the Government's estimation, provides the greatest overall benefit in response to the requirement. See FAR 2.101.                                                                                                                                                                                                                                                          |
| Deficiency           | A material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level.                                                                                                                                                                                                                |
| Recency              | As it pertains to past performance information, is a measure of the time that has elapsed since the past performance reference occurred. Recency is expressed as a period of time during which past performance references are relevant.                                                                                                                                                                                         |
| Relevancy            | As it pertains to past performance information, is a measure of the extent of similarity between the service/support effort, complexity, dollar value, contract type, and subcontract/teaming or other comparable attributes of past performance examples and the solicitation requirements; and a measure of the likelihood that the past performance is an indicator of future performance.                                    |
| Risk                 | As it pertains to source selection, is the potential for unsuccessful contract performance. The consideration of risk assesses the degree to which an offeror's proposed approach to achieving the technical factor or subfactor may involve risk of disruption of schedule, increased cost or degradation of performance, the need for increased government oversight, and the likelihood of unsuccessful contract performance. |
| Significant Strength | An aspect of an offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.                                                                                                                                                                                                                           |
| Significant Weakness | In the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance                                                                                                                                                                                                                                                                                                                               |
| Strength             | Is an aspect of an offeror's proposal that has merit or exceeds specified performance or capability requirements in a way that will be advantageous to the Government during contract performance.                                                                                                                                                                                                                               |

|          |                                                                                                                                                                                                                                                                                                                                            |
|----------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Tradeoff | Is a source selection proves used when it may be in the best interest of the Government to consider award to other than the lowest prices offeror or other than the highest technically rated offeror but it is not possible to place a quantifiable value on proposed performance or capabilities above threshold (minimum) requirements. |
| Weakness | A flaw in the proposal that increases the risk of unsuccessful contract performance.                                                                                                                                                                                                                                                       |

1.3. The Government anticipates a single Task Order award resulting from this solicitation. However, the Government reserves the right to award no task order, depending on the quality of the proposals received and the availability of funds. The Government also reserves the right to make an award without discussions.

1.4. The award decision will be determined based on the Government's evaluation of each Offeror's complete proposal against the evaluation factors and subfactors identified below. In making this decision, the Government is more concerned with obtaining offers demonstrating superior technical merit based on the non-price factors at a reasonable cost or price than with making an award to the Offeror with the lowest proposed cost/price. Accordingly, the Government may be willing to pay a reasonable premium for a contract offering superior technical merit.

1.5. In order to select the successful Offeror, the Government will compare Offeror proposals. The comparison will trade off differences in technical merit based on the non-price factors and Price. If one Offeror has both the better technical merit or capability and the lower price, then that Offeror will be the better value. If one Offeror has the better technical merit or capability and a higher price, the Government will decide whether the difference in technical merit/capability is worth the difference in price. If it is determined that the difference in technical merit/capability is worth the difference in price, then the more capable, higher-priced Offeror will be the better value. If not, then the less capable, lower-priced Offeror will be the better value. The best value analysis will not be performed for any Offerors who are unacceptable or unsatisfactory in any factor or subfactor and award will not be made to any Offeror who is unacceptable or unsatisfactory in any factor or subfactor.

1.6. It is expected that SeaPort NxG-e MAC Prime Contractor proposed teams will be comprised of subcontractors that are members of their respective teams.

1.7. Award will be made to that Offeror whose proposal is the most advantageous to the Government under the selection criteria set forth in this Section M.

1.8. The Government intends to evaluate proposals and award the Task Order upon initial proposals. Therefore, the Offeror's initial proposal should contain the Offeror's best terms from a cost or price and technical standpoint. However, in accordance with clause H-5 of the basic IDIQ contract, the Government may contact any or all or a limited number of awardees with questions concerning their responses as permitted under FAR Part 16.

1.9. The following conditions must be met in order to be eligible for award:

1.9.1. The proposal must comply in all material respects with the requirements of the law, regulation and conditions set forth in this solicitation and in the SeaPort NxG basic IDIQ contract,

## 2.0 Evaluation Factors and Subfactors:

### 2.1. Application of Factors and Subfactors

2.1.1 General. The Government will apply evaluation factors and subfactors to identify the best value proposal. The evaluation factors and subfactors represent key areas of importance to be considered in the source selection decision. The factors, subfactors, and associated elements have been chosen to support meaningful discrimination between and among competing proposals. As demonstrated in their proposals, prospective Offerors shall be evaluated in terms of their ability to meet or exceed the program's requirements stated in the Performance Work Statement (PWS). Proposals shall be evaluated in accordance with the factors and subfactors described in paragraph 2.1.2. below.

2.1.2. Relative Importance. The following table indicates all significant factors and significant subfactors that will be considered in awarding the Task Order. The relative importance of the evaluation factors and subfactors contained in the RFP reflects the overall requirements of this acquisition as outlined in the PWS.

| FACTORS               | SUBFACTORS                           |
|-----------------------|--------------------------------------|
| 1. Technical Approach | A. Technical Approach and Experience |
|                       | B. Key Personnel Resume              |
|                       | C. Quality Control Plan              |
| 2. Past Performance   | (None)                               |
|                       |                                      |

|          |        |
|----------|--------|
| 3. Price | (None) |
|----------|--------|

The evaluation factors are divided into three categories: Technical Approach, Past Performance, and Price. Within the Technical Approach factor, subfactors (A) thru (C) are listed in descending order of importance. Among the factors, Technical Capability is more important than Past Performance. Both factors, when combined, are significantly more important than price.

2.1.3. Adjectival Ratings. The Government will perform an evaluation of the Technical Approach and Past Performance evaluation factors and subfactors based on the Offeror's proposal. This evaluation focuses on strengths and weaknesses of the Offeror's proposal, resulting in the assignment of an adjectival rating for each factor and subfactor. Cost/Price will not be assigned an adjectival rating.

Note: The following Table M1 is combined technical/risk adjectival ratings/definitions will be used for the Technical Approach evaluation factors and subfactors.

Table M1 - Combined Technical/Risk Rating (Technical Approach)

| Adjectival Rating | Description                                                                                                                                                                                                |
|-------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Outstanding       | Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low. |
| Good              | Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.          |
| Acceptable        | Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.                                      |
| Marginal          | Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.                                                                 |
| Unacceptable      | Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.                                  |

### 3.0. Adjectival Ratings for the Past Performance Proposal

3.1. The past performance evaluation results in an assessment of the offeror's probability of meeting the solicitation's requirements. The past performance evaluation considers each offeror's demonstrated recent and relevant record of performance in supply and services that meets the contract's requirement. In accordance with FAR 15.205(a)(2), the currency and relevancy of the information, source of the information, context of the data, and general trends in contractor's performance shall be considered. These are combined to establish one performance confidence assessment rating for each offeror. There are three aspects to the past performance evaluation: recency, relevancy (including context of data) and quality (including general trends in contractor performance and source of information).

3.1.1. Recency: The first is to evaluate the recency of the offeror's past performance. Recency is generally expressed as a time period during which past performance references are considered relevant and is critical to establishing the relevancy of past performance information. Recency is considered contracts awarded within the last five years.

3.1.2. Relevance: The second is to determine how relevant a recent effort accomplished by the offeror is to the effort to be acquired through the source selection. In establishing what is relevant for the acquisition, consideration shall be given to those aspects of an Offeror's contract history that would give the greatest ability to measure whether the Offeror is capable of satisfying the current procurement. Common aspects of relevancy include similarity of service/support, type of tasks performed; complexity; dollar value, contract type, and degree of subcontract/teaming. There are four ratings of relevancy as shown in Table M-3. With respect to relevancy, more relevant past performance will typically be a stronger predictor of future success and have more influence on the past performance confidence assessment than past performance of lesser relevance.

Table M-3 Relevancy Rating

| Rating        | Definition                                                                                                                               |
|---------------|------------------------------------------------------------------------------------------------------------------------------------------|
| Very Relevant | Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires. |



|                   |                                                                                                                                           |
|-------------------|-------------------------------------------------------------------------------------------------------------------------------------------|
| Relevant          | Present/past performance effort involved much of the magnitude of effort and complexities this solicitation requires.                     |
| Somewhat Relevant | Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.           |
| Not Relevant      | Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires. |

3.1.3. Quality of Services: The third aspect of the past performance evaluation is to establish the overall quality of the offeror's past performance (see FAR 15.304(c)(2)). The past performance evaluation conducted in support of a current source selection does not establish, create, or change the existing record and history of the offeror's past performance on past contracts; rather, the past performance evaluation process gathers information from customers on how well the offeror performed those past contracts. The Past Performance Evaluation Team will review all past performance information collected and determine the quality of the offeror's performance, general trends, and usefulness of the information and incorporate these into the performance confidence assessment. A separate quality assessment rating is not required; rather, the past performance confidence assessment rating is based on the offeror's overall record of recency, relevancy, and quality of performance.

3.2. Sources of Past Performance Information for Evaluation - as follows:

3.2.1. The Offeror

3.2.2. CPARS and;

3.2.3. Any other sources available to the Government, to include, but not limited to, other databases; interviews with Program Managers, Contracting Officers, and Fee Determining Officials; and the Defense Contract Management Agency.

3.2.4. The evaluation team will review this past performance information and determine the quality and usefulness as it applies to a performance confidence assessment. In conducting a performance confidence assessment, each Offeror shall be assigned one of the adjectival ratings in Table M-4.

Table M-4 Past Performance Assessment Rating

| Rating                  | Description                                                                                                                                                                                                                                                                         |
|-------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Substantial Confidence  | Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.                                                                                                                    |
| Satisfactory Confidence | Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation that the offeror will successfully perform the required effort.                                                                                                              |
| Limited Confidence      | Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.                                                                                                                     |
| No confidence           | Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.                                                                                                             |
| Neutral Confidence      | No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned.<br><br>The offeror may not be evaluated favorably or unfavorably on the factor of past performance. |

3.2.5. The final past performance rating will be termed Past Performance and is based on the offeror's overall record of recency, relevancy and quality of performance.

3.2.6. In the case of offerors for which there is no information on past contract performance or where past contract performance information is not available, the offeror may not be evaluated favorably or unfavorably on the factor of past contract performance (see FAR 15.305(a)(2)(iv).) In this case, the offeror's past performance is unknown and assigned a performance confidence rating of "neutral." Although the Evaluation may not rate an offeror that lacks recent, relevant past performance favorably or unfavorably with regard to past performance, the Evaluation may determine, that a "Substantial Confidence" or "Satisfactory Confidence" past performance rating is worth more than a "Neutral Confidence" past performance rating in a tradeoff source selection decision.

#### 4.0. Description of Evaluation Factors and Subfactors

Factor 1: Technical Approach

(Subfactor A): Technical Approach

The Government will evaluate:

- The degree to which the proposal demonstrates specific knowledge, capability, relevant experience, and personnel qualifications to perform the tasks outlined in the Performance Work Statement sub-task structure.
- The degree to which the proposal demonstrates the Offeror's ability to support all technical training and instructional services described in the PWS; and the Offeror's ability to hire and retain personnel capable of meeting current as well as future requirements.

(Subfactor B): Key Personnel Resume

The Government will evaluate:

- The degree to which the resume demonstrates the Offeror's knowledge and ability to successfully meet requirements of the PWS and related competencies.
- The level of experience and qualifications in performing each of the PWS task area.

(Subfactor C): Quality Control Plan (QCP)

The Government will evaluate:

- The degree to which the QCP clearly identifies and describe the:
  - o self-monitoring methods and processes it will implement.
  - o performance measurements metrics.
  - o compliance with the performance requirement summary (PRS).
  - o method for discrepancy resolution; and
  - o ability to incorporate and address unplanned events.

Factor 2: Past Performance

Past performance is a measure of the degree to which the Offeror satisfied its customers in previous relevant contracts and complied with Federal, State, and local laws and regulations. The Government will evaluate Past Performance Information and Previous Contract Effort Narratives, and may contact some of each Offeror's customers to ask whether or not they believe: (1) that the Offeror is capable, efficient and effective; (2) that the Offeror's performance conformed to the terms and conditions of its contract; (3) that the Offeror was reasonable and cooperative during performance; (4) that the Offeror was committed to customer satisfaction; and (5) if given a chance would they select the same or a different Contractor. The Government may consider past performance information obtained from sources other than those identified by the Offeror, including Federal, State, and local government agencies, Better Business Bureaus, published media and electronic databases. The lack of recent and relevant past performance information will result in the assignment of a neutral rating (i.e. neither favorable nor unfavorable) for this factor.

Factor 3: Price

Total Evaluated Price will be calculated by summing the evaluated price for the base year and all option years, plus the Option to Extend, per FAR clause 52.217-8. Evaluation of options WILL NOT obligate the Government to exercise the options. Price will be evaluated to determine that the proposed price is fair and reasonable in accordance with FAR 15.404-1. Price reasonableness will be determined using one or more techniques identified in FAR 15.404-1 such as comparison of competitive offers. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more contract line items or subline item(s) appear to be significantly overstated or understated as indicated by the application of price analysis techniques. Price will be evaluated by totaling the prices for all line items, including option periods, for which the Government has requested the offeror provide a price. Option prices will be evaluated at time of award. Evaluation of the options WILL NOT obligate the Government to exercise the options. The six-month option pricing should not exceed 50% of the last option year.

\*\*\*\*\* CONTROLLED UNCLASSIFIED INFORMATION (CUI) \*\*\*\*\*

## 5.0 Factor I - Technical Grading Criterion:

| Table 2     | Combined Technical/Risk Rating                                                                                                                                                                             |
|-------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Rating      | Description                                                                                                                                                                                                |
| Outstanding | Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low. |
| Good        | Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.          |
|             |                                                                                                                                                                                                            |

|              |                                                                                                                                                                            |
|--------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Acceptable   | Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.      |
| Marginal     | Proposal has not demonstrated an adequate approach and understanding of the requirements, and /or risk of unsuccessful performance is high.                                |
| Unacceptable | Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is un-awardable, and/or risk of performance is unacceptably high. |

## 5.0 Factor II - Past Performance Grading Criteria

Only offers that are rated Acceptable or HIGHER in Factor I - Technical may be evaluated for Factor II - Past Performance.

**5.1** The Government will assign one relevancy rating for each past performance effort submitted (maximum of 5), and one rating for overall confidence. The rating tables identified below as "Past Performance Relevancy Rating" Table and "Past Performance Assessment" Table will be utilized for the assignment of ratings for relevancy and confidence assessment.

**5.2** The assessment of offeror's past performance will be used by the Government as a means to evaluate the relative capability of the offeror and other competitors to successfully meet the requirements of the PWS and as a measure of performance risk for contract award. The government's assessment of performance risk is not intended to be the product of a mechanical or mathematical analysis of an offeror's performance on list of contracts, but rather the product of subjective judgment of the government after it considers all available relevant and recent information.

**5.3** The Government intends to verify past performance information on contracts listed by the offerors. The Government reserves the right to contact some or all of the references. The Government further reserves the right to obtain information for use in the evaluation of past performance from any and all sources including sources outside of the Government. The Contractor Performance Assessment Reporting System (CPARS) may be accessed to locate recent and relevant information.

**5.4** In the case of an offeror without a record of relevant past performance, or for whom information on past performance is not available, the government will not evaluate the offeror favorably or unfavorably on past performance. Such offerors will receive a "neutral" rating for past performance.

**5.5 Relevancy.** Each past performance data sheet will be evaluated to determine whether the work performed by the Offeror is relevant to the instant requirement. Relevant past performance is performance under contracts accomplished within the past five (5) years that is of the same or similar scope, complexity, and magnitude to that which is described in the solicitation. Common aspects of relevancy include, but are not limited to, the following: similarity of product/service/

support, complexity, dollar value, contract type, use of personnel (for services), and extent of subcontracting.

**5.6** The Government will assign one relevancy rating for each past performance effort submitted using the four levels of relevancy as shown in "Past Performance Relevancy Rating" Table below. Past performance of greater relevancy will typically be a stronger predictor of future success and have more influence on the past performance assessment than past performance of lesser relevance. Past performance reference that has no relevance to the instant requirement will not be evaluated favorably or unfavorably and will not be considered in the overall assessment of Past Performance.

### **5.7 Past Performance Relevancy Rating:**

| <b>Table 3</b>    | <b>Past Performance Relevancy Rating</b>                                                                                                  |
|-------------------|-------------------------------------------------------------------------------------------------------------------------------------------|
| Rating            | Definition                                                                                                                                |
| Very Relevant     | Present/past performance effort involved essentially the same scope and magnitude of effort and complexities this solicitation requires.  |
| Relevant          | Present/past performance effort involved similar scope and magnitude of effort and complexities this solicitation requires.               |
| Somewhat Relevant | Present/past performance effort involved some of the scope and magnitude of effort and complexities this solicitation requires.           |
| Not Relevant      | Present/past performance effort involved little or none of the scope and magnitude of effort and complexities this solicitation requires. |

**5.8** Each past performance reference under each offeror's Past Performance submission that is found to have at least some relevance to the instant requirement will be evaluated to determine the quality of the offeror's performance under that reference. The Government will focus its inquiry of the Offerors record of performance as it relates to timeliness, quality, cost control, and customer satisfaction.

**5.9** Quality of the relevant past performance will form the basis for the Past Performance Assessment. The quality of performance that has no relevance to the instant requirement will not be considered in the overall assessment of Past Performance. An offeror that is determined to have no relevant Past Performance will be rated as Unknown Confidence (Neutral).

**5.10** The Government will assign one Past Performance rating to each Offeror using the five levels of confidence as shown in "Past Performance Assessment" Table below. This rating will become the Offeror's overall rating for Past Performance.

**Past Performance Assessment Rating:**

| <b>Table 4</b>               | <b>Past Performance Assessment</b>                                                                                                                                                            |
|------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Rating                       | Definition                                                                                                                                                                                    |
| Substantial Confidence       | Based on the offeror's recent/relevant performance record, the Government has a high expectation that the offeror will successfully perform the required effort.                              |
| Satisfactory Confidence      | Based on the offeror's recent/relevant performance record, the Government has a reasonable expectation reasonable expectation that the offeror will successfully perform the required effort. |
| Limited Confidence           | Based on the offeror's recent/relevant performance record, the Government has a low expectation that the offeror will successfully perform the required effort.                               |
| No Confidence                | Based on the offeror's recent/relevant performance record, the Government has no expectation that the offeror will be able to successfully perform the required effort.                       |
| Unknown Confidence (Neutral) | No recent/relevant performance record is available or the offeror's performance record is so sparse that no meaningful confidence assessment rating can be reasonably assigned.               |

**6.0 Factor III - Price**

Only offers that are rated Acceptable or HIGHER in Factor I - Technical, and rated "Neutral", "Satisfactory", or "Substantial" Confidence will be evaluated for Factor III - Total Evaluated Price.

A price reasonableness determination will be made on the total evaluated price which will be used in the performance of a tradeoff analysis. A Total Evaluated Price will be calculated by summing the evaluated price for the base year, four (4) option years, and the Option to Extend. Evaluation of the options WILL NOT obligate the Government to exercise the options.

The Government will evaluate the Option to Extend Services under FAR 52.217-8 by including six (6) months (50 percent) of the Offeror's proposed price for Option Year 4. The Government may choose to exercise the extension of services at the end of Option Year 4 utilizing the rates for that ordering period.

If the Government determines that adequate price competition was not obtained and/or if the total evaluated price cannot be deemed fair and reasonable, the Government reserves the right to request cost or pricing data and to evaluate such data utilizing the proposal analysis techniques delineated in the FAR 15.404-1 as deemed appropriate.

A written notice of award or acceptance of an offer, mailed or otherwise furnished to the successful offeror within the time for acceptance specified in the offer, shall result in a binding contract without further action by either party. Before the offer's specified expiration the Government may accept an offer (or part of an offer), whether or not there are negotiations after its receipt, unless a written withdrawal is received prior to award.

**(End of provision)**